Supreme Court of Ohio Clerk of Court - Filed February 13, 2024 - Case No. 2023-0936

IN THE SUPREME COURT OF OHIO

STATE OF OHIO EX REL. KATHRYN HUWIG 14250 Sweetbriar Lane Novelty, Ohio 44072 Relator, vs. OHIO DEPARTMENT OF HEALTH 246 N. High St. Columbus, OH 43215, BRUCE VANDERHOFF, M.D. In His Official Capacity as Director, OHIO DEPARTMENT OF HEALTH 246 N. High St. Columbus, Ohio 43215, and JUDITH NAGY In Her Official Capacity as State Registrar, Office of Vital Statistics, OHIO DEPARTMENT OF HEALTH 246 N. High St. Columbus, Ohio 43215, Respondents.	CASE NO.: 2023-0936 ORIGINAL ACTION FOR WRIT OF MANDAMUS

AMENDED COMPLAINT FOR WRIT OF MANDAMUS

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For her Complaint for Writ of Mandamus against Respondents Ohio Department of Health, Bruce Vanderhoff, M.D., the Director of the Ohio Department of Health (the "Director"), and Judith Nagy, the State Registrar, Office of Vital Statistics, Ohio Department of Health (the "State Registrar") (collectively the "Department"), Relator Kathryn Huwig ("Relator") states as follows.

PARTIES

1. Relator is a citizen of the State of Ohio and has lived in Novelty, Ohio from 2016 to present.

2. From October 2020 to June 2021 Relator led a Facebook group known as "Understanding Ohio Covid-19 Data" with over 10,000 members, including dozens of Ohio lawmakers and officials. From July 2021 to present she has led Facebook groups known as "Science History Book Club," "Understanding Ohio Covid-19 Data 2.0," and "Understanding Ohio Covid-19 Data 3.0."

3. Relator has also had a podcast on Facebook known as "Beyond the Data," which has over 4,000 followers, from July 2021 to present.

4. The Department maintains a compilation of death event data in a secure mortality file (the "Death Database") and a Covid-19 vaccination dataset (the "Vaccination Database") (collectively the "Databases") as described below.

5. R.C. 3705.03 provides that the State Registrar, is the custodian of vital records. R.C. 3705.01 defines vital records as including reports of "death…and other data related thereto…" The Office of Vital Statistics has the responsibility of administering the system of vital statistics and preserving its official records. R.C. 3705.03(A).

6. The Director has the special duty of investigating contagious or infectious disease and taking prompt action to control and suppress it. R.C. 3701.14. In furtherance of this duty "he shall collect and preserve information…as may be useful in the discharge of the director's duties and for dissemination among the people." R.C. 3701.14(A). (Emphasis added.)

FACTS

A. Background.

7. On February 23, 2021, Relator testified before the Ohio House of Representative's State and Local Government Reform Committee on H.B. 90, a parallel bill to S.B. 22, which as subsequently enacted curtailed the Ohio governor's emergency powers. She was critical of the Department's data, which the Ohio governor relied on in issuing emergency Covid-19 orders.

8. The same House committee also held a hearing on S.B. 22 on March 9, 2021, at which Relator testified. However, on March 2, 2021, the Department changed the data on its website, which had been utilized in Relator's February 23, 2021 testimony. The change precluded her from making further analyses like those in her February 23, 2021 testimony.

B. The Public Records Requests.

9. On February 7, 2023, Relator requested data dictionaries for the Death Database and all vaccination databases related to Covid-19 vaccination. On March 15, 2023, the Department provided to her data dictionaries for the Death Database and the Vaccination Database. Copies of the data dictionaries are attached as Exhibits A and B.

10. On May 12, 2023, Relator requested reports from the Department based on selected fields from the data dictionaries. Exhibit C, pp. 15-19 (A copy of Relator's entire email correspondence with the Department regarding the requests which are the subject of the

complaint are attached as Exhibit C). The request for the reports initially covered several years but was later limited to the year 2021. *Id.*, p. 3.

11. On May 16, 2023, the Department declined the request asserting that it would be required to create a new record and would require the release of personal health information ("PHI"). *Id.*, pp. 11-15.

12. On May 17, 2023, Relator added a request for the entire Databases described by the data dictionaries, to resolve the Department's objection that the requested reports would involve creating new records. *Id.*, p. 11. Relator also requested that the Department explain how it accessed the requested records so that she could cure any issues with her request for the reports from the Databases. *Id.*, p. 10. She also asked the Department to redact what it thought was PHI, subject to her right to contest such redactions. *Id.*, p. 11.

13. On May 17, 2023, the Department declined to provide the Databases, asserting that the request was overbroad. *Id.*, p. 8. The Department also objected to providing information regarding maintaining and accessing the Databases because it involved critical infrastructure. *Id.*, p. 4.

14. On May 19, 2023, Relator limited her requests for the reports and databases to the year 2021 and renewed her request for information regarding how the requested records were maintained and accessed so she could consider revising her request as appropriate. *Id.*, p. 3. On May 19, 2023, the Department declined the request for the year 2021 as also overbroad. *Id.*, p. 1.

15. On June 6, 2023, Relator's attorney explained to the Department that Relator needed information regarding how the Department's existing software accessed the requested output, to assess what database reports would be considered existing records under Ohio law. Exhibit D, p. 2. On June 6, 2023, the Department acknowledged that it may have previously

used its software to provide reports but had no obligation to continue to do so. *Id.*, p. 1. The Department failed to provide any specific information regarding how its software maintained and accessed the requested records. *Id.*, p. 1.

C. The Death Database.

16. A report based on specific fields extracted from the Death Database was previously requested from the Department in *Standifer v. Ohio Department of Health*, Ohio Ct. of Cl. Case No 2022-00217PQ ("*Standifer*"). (Copies of documents obtained from the Ohio Court of Claims online docket relating to *Standifer* are attached to the Amended Complaint as Exhibits E and F.)

17. A report based on specific fields extracted from the Death Database was also previously requested from the Department in *Miller v. Ohio Department of Health, Vital Statistics*, Ct. of Cl. Case No 2020-00618PQ, 2021 WL 2629512 (Report and Recommendation) and Decision and Entry filed May 4, 2020, *rev. on other grounds by Miller v. Ohio Department of Health,* 2022-Ohio-357 (10th Dist.) ("*Miller*"). (Copies of documents obtained from the Ohio Court of Claims online docket relating to *Miller* are attached to the Amended Complaint as Exhibits G and H.)

18. The Death Database is maintained in the Department's Ohio Public Information Warehouse (also referred to as the EnterpriseDataWarehouseSecure) (the "Warehouse"). Amended Complaint, Exhibit E, Special Master's Order filed December 21, 2022 in *Standifer;* Amended Complaint, Exhibit F, Respondent's Response to Special Master's Order filed December 21, 2022 in *Standifer*, Affidavit of Devon Priddle, Data Administration Manager of the Ohio Department of Health's Bureau of Vital Statistics, ¶5b.

19. The Death Database contains data transferred daily to it from the Department's Electronic Death Registration System ("EDRS"). Exhibit F, Affidavit of Devon Priddle, ¶5b.

20. The Death Database is programmed by Department staff to export a particular set of variables in fixed positions. *Id.,* ¶¶7c, 9e. The Death Database can be exported as a spreadsheet from the Warehouse as a .csv file. *Id.*, ¶¶ 5b, 10a.

21. The data dictionary for the Death Database contains a .csv column showing how the Department's software is programmed to provide for the export of the Death Database as a .csv file. Exhibit A.

22. The Death Database can also be downloaded in Excel, PDF and Word. Amended Complaint, Exhibit G, Special Master's Order filed January 21, 2022 in *Miller*; Amended Complaint, Exhibit H, Affidavit of Karen Sorrell, Chief of the Ohio Department of Health's Bureau of Vital Statistics filed in *Miller*, ¶7, Responses to Additional Information and Documents Requested, ¶2.

23. The Department's staff is capable of redacting the contents of selected data columns from the Death Database exported as spreadsheets from the Warehouse. Exhibit F, Affidavit of Devon Priddle, ¶6a.

24. The Department's Excel software can open .csv files and Excel files downloaded from the Warehouse's Death Database, and redact rows, columns, and cells, in whole or in part.

25. A report based on specific fields extracted from the Death Database was previously requested from the Department in *Ludlow v. Ohio Dept. of Health*, Ct. of Claims Case No. 2021-00040PQ, 2021 WL 8824878 and 2021 WL 8824879, *rev. on other grounds in Ludlow v. Dept. of Health*, 2022-Ohio-3399 (10th Dist.), *cert. granted Ludlow v. Ohio Department of Health*, S. Ct. Case No. 2022-1391 ("*Ludlow*").

26. The Department provided the Death Database reports requested by Ludlow, a Columbus Dispatch reporter, but redacted names and addresses. (These redactions are the subject of *Ludlow v. Ohio Department of Health*, S. Ct. Case No 2022-1391, which is presently pending before this Court.) Relator has not requested names and addresses in the present case.

27. The records requested by Relator are public records under R.C. 149.43(A)(1). Respondents claim that the requested records are exempt from disclosure under R.C. 149.43(A)(1)(v), which exempts "[r]ecords the release of which is prohibited by state...law.

28. R.C. 3701 precludes the release of protected health information which "reveals the identity of the individual who is the subject of the information" or "could be used to reveal the identity of [such] individual."

29. R.C. 3701 also provides that information in "summary, statistical, or aggregate form...that does not identify an individual is a public record under section 149.43."

30. The Department claims that the Death Database contains information that could be used to identify an individual, including but not limited to zip code, race, and date of birth. Exhibit C, p. 4. Relator requested the Department to redact information that it considered exempt (subject to her right to challenge incorrect redactions) and provide all nonexempt information with redactions plainly visible as provided by R.C. 149.43(B)(1). Exhibit C, p.7. The Department failed to provide the requested public records.

D. The Vaccination Database.

31. The Director has the general duty of administering the Ohio Department of Health as its chief executive officer. R.C. 3701.03. The Director may make special or standing orders or rules for preventing the spread of contagious or infectious disease. R.C. 3701.13(C).

32. On February 2, 2021, the Director issued an order in response to the Ohio governor's March 2020 declaration of a state of emergency, requiring documentation of Covid-19 vaccinations in Ohio's Impact State Immunization Information System ("IIS or "ImpactSIIS"). Exhibit I, Director's Journal Entry, In re Covid-19 Volunteer Vaccine Providers, p. 11.

33. In 2019, the Department entered into a cooperative agreement with the federal Centers for Disease Control and Prevention (the "CDC") in connection with a program titled Immunization and Vaccines for Children now known as Immunization CoAg [Cooperative Agreement] and Vaccines for Children, No. CDC-RFA-IP19-1901 (the "Program").

34. The Program requires the Department to, among other things, enhance its IIS capabilities, encourage vaccine adverse event reporting ("VAERS"), and monitor VAERS and vaccine safety data. The Department has been awarded $289,359,371 from 2021 to 2023 pursuant to the Program.

35. The Program requires the Department to meet the IIS Functional Standards. IIS Functional Standard 13.0 requires the Department's IIS to support reporting and investigation of vaccine adverse events. This includes receiving and populating vaccine adverse events reports with additional information, storing a copy of the report, and using IIS to obtain vaccine adverse event information for the purpose of acting upon it.

36. The Program further requires that the Department's IIS include in its database schema a method to receive and store certain core data elements, even if the IIS does not routinely collect this information so that if it receives a record from another system, that data element will not be lost.

37. The Department partnered with the Ohio Department of Administrative Services to set up the DataOhio Portal, which accesses, among other things, the Department's IIS vaccination dataset (the "Vaccination Database"). The data dictionary for the Vaccination Database is attached as Exhibit B. The Vaccination Database can be downloaded as a .cvs file from the datasets accessed by the DataOhio Portal.

38. The Department's staff is capable of redacting the contents of selected data columns from the Vaccination Database exported as .csv files from the datasets accessed by the DataOhio Portal. Exhibit F, Affidavit of Devon Priddle, ¶6a.

39. The Department's Excel software can open the downloaded .csv files, and redact rows, columns, and cells, in whole or in part.

40. The Department claims that the Vaccination Database contains information that could be used to identify an individual, including date of birth and date of death. Exhibit C, p. 4. Relator requested the Department to redact information that it considered exempt (subject to her right to challenge incorrect redactions) and provide all nonexempt information with redactions plainly visible as provided by R.C. 149.43(B)(1) and R.C. 3701. Exhibit C, p.7. The Department failed to provide the requested public records.

41. The affidavit of Kathryn Huwig in support of this amended complaint for writ of mandamus has been filed contemporaneously with this Amended Complaint and is incorporated by reference in this Amended Complaint as if fully restated herein.

CLAIMS FOR RELIEF

42. Paragraphs 1 through 41 set forth above, are incorporated by reference herein.

43. R.C. 149.43(C)(1) provides that a person aggrieved by the failure of a public office to comply with an obligation in accordance with R.C. 149.43(B) may file a mandamus action as an original action in this Court.

44. Relator is aggrieved by the Department's failure to comply with R.C. 149.43(B) by providing requested records and information regarding maintaining and accessing records as described above.

45. The Department has a clear legal duty to comply with R.C. 149.43(B) by making the requested records available for public inspection and by providing the requested information regarding maintaining and accessing such records.

WHEREFORE, Relator respectfully requests:

A. that this Court issue a peremptory writ of mandamus directing the Department to allow public access to the requested records;

B. that in the alternative, this Court issue an alternative writ of mandamus;

C. that this Court award Relator the costs of this action, reasonable attorneys' fees, and statutory damages, pursuant to R.C. 149.43(C); and

D. all other relief that is just and equitable.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that the foregoing has been served this 13th day of February, 2024 via electronic mail, pursuant to Sup. Ct. Proc. R. 3.11, upon:

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Layout for Ohio Mortality Download File

Updated: 01/09/2023

Variable	.CSV Column	.TXT Position	Field Name	Format		Code structure description
Unique certificate number	A	1	CERTKEY	$12		Redacted for non-Ohio deaths
Date of Death--Year	B	13	DOD_YR	4		4 digit year; current data year
State of Death	C	17	DSTATE	$2		OH for Ohio, XX all other states
Certificate Number	D	19	FILENO	$6		1-999999, deaths occurring outside Ohio: 999999
Void flag	E	25	VOID	$1		0 = default or valid record, 1 = VOID
Source of record	F	26	MFILED	$1		0 = electronic, 1 = paper, 2 = mixed
Decedent's Legal Name--Given	G	27	GNAME	$50		REDACT for non-Ohio deaths
Decedent's Legal Name--Middle	H	77	MNAME	$1		
Decedent's Legal Name--Last	I	78	LNAME	$50		
Decedent's Legal Name--Suffix	J	128	SUFF	$10		
Father's Surname	K	138	FLNAME	$50		REDACT for non-Ohio deaths
Sex	L	188	SEX	$1		M, F, U
Social Security Number -- last 4 digits	M	189	SSN	$4		
Decedent's Age--Type	N	193	AGETYPE	1	1	Years
					2	Months
					4	Days
					5	Hours
					6	Minutes
					9	Unknown (Not Classifiable)
Decedent's Age--Units	O	194	AGE	3		1 - 135, 999 = unknown
Date of Birth--Year	P	197	DOB_YR	4		4 digit year or 9999 = unknown
Date of Birth--Month	Q	201	DOB_MO	2		1-12, 99 = unknown
Date of Birth--Day	R	203	DOB_DY	2		1-31 (based on month), 99 = unknown
Birthplace--Country code	S	205	BPLACE_CNT	$2		US (if foreign see FIPS codes file) or literal value in field BIRTH_COUNTRY
Birthplace--State	T	207	BPLACE_ST	$2		Standard state abbreviation or XX = foreign
Decedent's Residence--City FIPS code	U	209	CITYC	5		Assigned value from Geocoder. See literal value in CITYTEXT_R
Decedent's Residence--County FIPS code	V	214	COUNTYC	3		Assigned value from Geocoder. COUNTYC require STATEC for interpretation. See literal value in COUNTYTEXT_R
Decedent's Residence--State FIPS code	W	217	STATEC	$2		Assigned value from Geocoder. See literal value in STATETEXT_R
Decedent's Residence--Country FIPS code	X	219	COUNTRYC	$2		US (if foreign see FIPS codes file) or field COUNTRYTEXT_R for literal value
Decedent's Residence--Inside City Limits	Y	221	LIMITS	$1		Y, N, U
Marital Status	Z	222	MARITAL	$1	M	Married
					A	Married but Separated
					W	Widowed
					D	Divorced
					S	Never Married
					U	Unknown or Not Classifiable
Place of Death	AA	223	DPLACE	1	1	Inpatient
					2	Emergency Room/Outpatient
					3	Dead on Arrival
					4	Decedent's Home
					5	Hospice Facility
					6	Nursing Home/Long Term Care Facility
					7	Other
					9	Unknown
County code where death occurred	AB	224	COD	3		Assigned value from Geocoder. 999=outside Ohio. See field COUNTYTEXT_D for literal
Method of Disposition	AC	227	DISP	$1	B	Burial
					C	Cremation
					D	Donation
					E	Entombment
					R	Removal from state
					O	Other
					U	Unknown
Date of Death--Month	AD	228	DOD_MO	2		1-12, 99 = unknown
Date of Death--Day	AE	230	DOD_DY	2		1-31 (based on month), 99 = unknown
Time of Death	AF	232	TOD	$4		0-2359, 9999
Decedent's Education	AG	236	DEDUC	1	1	8th grade or less

RELATOR'S EXHIBIT A

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Variable	.CSV Column	.TXT Position	Field Name	Format		Code structure description
					2	9th through 12th grade; no diploma
					3	High School Graduate or GED Completed
					4	Some college credit, but no degree
					5	Associate Degree
					6	Bachelor's Degree
					7	Master's Degree
					8	Doctorate Degree or Professional Degree
					9	Unknown
Decedent of Hispanic Origin?--Mexican	AH	237	DETHNIC1	$1		N, U, or H = Yes
Decedent of Hispanic Origin?--Puerto Rican	AI	238	DETHNIC2	$1		N, U, or H = Yes
Decedent of Hispanic Origin?--Cuban	AJ	239	DETHNIC3	$1		N, U, or H = Yes
Decedent of Hispanic Origin?--Other	AK	240	DETHNIC4	$1		N, U, or H = Yes
Decedent of Hispanic Origin?--Other, Literal	AL	241	DETHNIC5	$20		Literal or blank
Decedent's Race--White	AM	261	RACE1	$1		Y, N
Decedent's Race--Black or African American	AN	262	RACE2	$1		Y, N
Decedent's Race--American Indian or Alaska Native	AO	263	RACE3	$1		Y, N
Decedent's Race--Asian Indian	AP	264	RACE4	$1		Y, N
Decedent's Race--Chinese	AQ	265	RACE5	$1		Y, N
Decedent's Race--Filipino	AR	266	RACE6	$1		Y, N
Decedent's Race--Japanese	AS	267	RACE7	$1		Y, N
Decedent's Race--Korean	AT	268	RACE8	$1		Y, N
Decedent's Race--Vietnamese	AU	269	RACE9	$1		Y, N
Decedent's Race--Other Asian	AV	270	RACE10	$1		Y, N
Decedent's Race--Native Hawaiian	AW	271	RACE11	$1		Y, N
Decedent's Race--Guamanian or Chamorro	AX	272	RACE12	$1		Y, N
Decedent's Race--Samoan	AY	273	RACE13	$1		Y, N
Decedent's Race--Other Pacific Islander	AZ	274	RACE14	$1		Y, N
Decedent's Race--Other	BA	275	RACE15	$1		Y, N
Decedent's Race--First American Indian or Alaska Native Literal	BB	276	RACE16	$30		
Decedent's Race--Second American Indian or Alaska Native Literal	BC	306	RACE17	$30		
Decedent's Race--First Other Asian Literal	BD	336	RACE18	$30		
Decedent's Race--Second Other Asian Literal	BE	366	RACE19	$30		
Decedent's Race--First Other Pacific Islander Literal	BF	396	RACE20	$30		
Decedent's Race--Second Other Pacific Islander Literal	BG	426	RACE21	$30		
Decedent's Race--First Other Literal	BH	456	RACE22	$30		
Decedent's Race--Second Other Literal	BI	486	RACE23	$30		
Race Tabulation Variables are returned from NCHS according to 2003	BJ - BQ	516-539	RACE1E - RACE8E	$3		See Race codes list.pdf
multiple race record format	BR - BY	540-563	RACE16C - RACE23C	$3		See Race codes list.pdf
Decedent's Race--Missing	BZ	564	RACE_MVR	$1		R=Refused S=Sought, but unknown C=Not obtainable
Occupation -- Literal	CA	565	OCCUP	$40		Literal occupation of decedent
Occupation -- Code	CB	605	OCCUPC	$3		Occupation codes from NIOSH, 2003 version
Industry -- Literal	CC	608	INDUST	$40		Literal industry of decedent
Industry -- Code	CD	648	INDUSTC	$3		Industry codes from NIOSH, 2003 version
Birth / Death Linking - birth certificate number	CE	651	BCNO	$6		Blank or 6 digit cert number if matched
Infant Death/Birth Linking - year of birth	CF	657	IDOB_YR	$4		4 digit year or 9999 = unknown
Birth / Death Linking - state of birth listed on death certificate	CG	661	BSTATE	$2		See FIPS codes file or XX = foreign
Manner of death (from certifier)	CH	663	MANNER	$1	N	Natural
					A	Accident
					S	Suicide
					H	Homicide
					P	Pending investigation
					C	Could not be determined
Place of Injury -Computer Generated	CI	664	INJPL	$1	0	Home
					1	Residential Institution
					2	School, Other Institutions, Administrative Area
					3	Sports and Recreation Area
					4	Street/Highway

Layout for Ohio Mortality Download File

Updated: 01/09/2023

Variable	.CSV Column	.TXT Position	Field Name	Format		Code structure description
					5	Trade and Service Area
					6	Industrial and Construction Area
					7	Farm
					8	Other specified Place
					9	Unspecified Place
Manual underlying cause code	CJ	665	MAN_UC	$5		Exception records with codes manually assigned at NCHS
ACME primary underlying cause code	CK	670	ACME_UC	$5		ACME primary underlying cause of death ICD-10 code
Entity-Axis Codes	CL	675	EAC	$160		All ICD-10 codes as reported on death record, including positions of immediate and underlying causes. Max 20 codes.
TRANSAX conversion flag: Computer Generated	CM	835	TRX_FLG	$1	3	Conversion using non-ambivalent table entries
					4	Conversion using ambivalent table entries
					5	Duplicate entity-axis codes deleted; no other action involved
					6	Artificial code conversion; no other action
						No Action: blank
Record-Axis Codes	CN	836	RAC	$100		All ICD-10 codes assigned to causes of death in certificate
Was an Autopsy Performed?	CO	936	AUTOP	$1		Y, N, blank
Were Autopsy Findings Available to Complete the Cause of Death?	CP	937	AUTOPF	$1		Y, N, U, blank or X = not applicable
Did Tobacco Use Contribute to Death?	CQ	938	TOBAC	$1		Y, N, U, or P = Probably
Pregnancy	CR	939	PREG	$1	1	Not pregnant within past year
					2	Pregnant at time of death
					3	Not pregnant, but pregnant within 42 days of death
					4	Not pregnant, but pregnant 43 days to 1 year before death
					7	Not on certificate
					8	Not Applicable: Computer generated
					9	Unknown if pregnant within last year
						Out of state records may report X, U, or other variables
Date of Injury--Month	CS	940	DOI_MO	2		1-12, 99 = unknown, or blank. Also see field INJURY_DATE
Date of Injury--Day	CT	942	DOI_DY	2		1-31, 99 = unknown, or blank. Also see field INJURY_DATE
Date of Injury--Year	CU	944	DOI_YR	4		4-digit, 9999 = unknown, or blank. Also see field INJURY_DATE
Injury time	CV	948	TOI_HR	$4		0 - 2359, 9999 = unknown, or blank. Also see field INJURY_TIME
Injury at work	CW	952	WORKINJ	$1		Blank, Y, N, U
Title of Certifier	CX	953	CERTL	$30	D	Certifying Physician
					P	Pronouncing and Certifying Physician
					M	Medical Examiner/Coroner
						Literal text for other individual legally allowed to certify
Was decedent in the armed forces?	CY	983	ARMEDF	$1		Y, N, U
Place of death -- facility name or other description	CZ	984	DINSTI	$30		Hospital, Home, or other description
Place of death -- address	DA	1014	ADDRESS_D	$50		REDACT for non-Ohio deaths
Place of death -- city	DB	1064	CITYTEXT_D	$28		REDACT for non-Ohio deaths
Place of death -- zip code	DC	1092	ZIP9_D	$9		5 digit code, blank or REDACT if non-Ohio record
Place of death -- county	DD	1101	COUNTYTEXT_D	$28		REDACT for non-Ohio deaths
Spouse first name	DE	1129	SPOUSEF	$50		
Spouse last name	DF	1179	SPOUSEL	$50		
Address of decedent (as reported, not geocoded)	DG	1229	STNUM_R	$50		Number and name of street (same as Address_R)
Address of decedent -- unit number	DH	1279	UNITNUM_R	$7		Unit of apartment in STNUM_R
Address of decedent -- city	DI	1286	CITYTEXT_R	$28		City name or 'REDACT' if non-Ohio record
Address of decedent -- zip code	DJ	1314	ZIP9_R	$9		5 digit code or 'REDACT' if non-Ohio record
Address of decedent -- county	DK	1323	COUNTYTEXT_R	$28		County name or 'REDACT' if non-Ohio record
Address of decedent -- state	DL	1351	STATETEXT_R	$28		State or 'REDACT' if non-Ohio record
Address of decedent -- country	DM	1379	COUNTRYTEXT_R	$28		Country name or 'REDACT' if non-Ohio record
Address of decedent -- street address string	DN	1407	ADDRESS_R	$50		Street address string (same as STNUM_R)
Hispanic edited value from .mre files	DO	1457	DETHNICE	$3		https://www.cdc.gov/nchs/data/dvs/HispanicCodeTitles.pdf

Layout for Ohio Mortality Download File

Updated: 01/09/2023

Variable	.CSV Column	.TXT Position	Field Name	Format	Code structure description
Race values returned from NCHS. Note: Due to a change in the way NCHS codes race values as collected by ODH, many race values in data years 2022 and beyond may display as unknown. ODH is aware of this issue and is working to resolve it. Data prior to 2022 is unaffected.	DP	1460	NCHSBRIDGE	$2	01 = White , 02 = Black , 03 = American Indian , 04 = Asian Indian , 05 = Chinese , 06 = Filipino , 07 = Japanese , 08 = Korean , 09 = Vietnamese , 10 = Other Asian , 11 = Native Hawaiian , 12 = Guamanian , 13 = Samoan , 14 = Other Pacific Islander , 15 = Other , 21 = Bridged White , 22 = Bridged Black , 23 = Bridged American Indian/Alaskan Native , 24 = Asian & Pacific Islander
Decedent's middle name	DQ	1462	DMIDDLE	$50	REDACT for non-Ohio deaths
Father's first name	DR	1512	DDADF	$50	
Father's middle name	DS	1562	DDADMID	$50	
Mother's first name	DT	1612	DMOMF	$50	
Mother's middle name	DU	1662	DMOMMID	$50	
Mother's maiden surname	DV	1712	DMOMMDN	$50	
Was case referred to medical examiner/coroner?	DW	1762	REFERRED	$1	Y, N, U
Place of injury	DX	1763	POILITRL	$50	Literal description; Blank for natural death
Description of how injury occurred	DY	1813	HOWINJ	$250	Literal description; Blank for natural death
If transportation accident, specify role	DZ	2063	TRANSPRT	$30	DR=Driver/Operator PA=Passenger PE=Pedestrian
City of injury - literal	EA	2093	CITYTEXT_I	$28	Reported city name for injury deaths
Replacement record code	EB	2121	REPLACE	$1	0=original record; 1=updated record; 2=updated, do not send to NCHS
Cause of death Part I Line a	EC	2122	COD1A	$120	Literal information reported on Line a
Cause of death Part I Line a interval	ED	2242	INTERVAL1A	$20	Duration reported on Line a
Cause of death Part I Line b	EE	2262	COD1B	$120	Literal information reported on Line b
Cause of death Part I Line b interval	EF	2382	INTERVAL1B	$20	Duration reported on Line b
Cause of death Part I Line c	EG	2402	COD1C	$120	Literal information reported on Line c
Cause of death Part I Line c interval	EH	2522	INTERVAL1C	$20	Duration reported on Line c
Cause of death Part I Line d	EI	2542	COD1D	$120	Literal information reported on Line d
Cause of death Part I Line d interval	EJ	2662	INTERVAL1D	$20	Duration reported on Line d
Cause of Death Part II	EK	2682	OTHERCONDITION	$240	Literal information reported in Part II
Decedent's Birth Place City - Literal	EL	2922	DBPLACECITY	$28	Literal value as reported
Spouse's Middle Name	EM	2950	SPOUSEMIDNAME	$50	
Spouse's Suffix	EN	3000	SPOUSESUFFIX	$10	
Father's Suffix	EO	3010	FATHERSUFFIX	$10	
Mother's Suffix	EP	3020	MOTHERSSUFFIX	$10	
Informant's Relationship	EQ	3030	INFORMRELATE	$50	
Disposition state - literal	ER	3080	DISPSTATE	$28	State abbreviation
Disposition city - literal	ES	3108	DISPCITY	$28	City literal
Funeral facility name	ET	3136	FUNFACNAME	$100	
Funeral facility address	EU	3236	FUNFACADDRESS	$50	
Funeral facility city	EV	3286	FUNCITYTEXT	$28	
Funeral facility state - literal	EW	3314	FUNSTATE	$28	Blank
Funeral facility zip	EX	3342	FUNZIP	$9	
Person Pronouncing Date Signed	EY	3351	PPDATESIGNED	$8	MMDDYYYY
Person Pronouncing Time Pronounced	EZ	3359	PPTIME	$4	Military time
Certifier's First Name	FA	3363	CERTFIRST	$50	
Certifier's Middle Name	FB	3413	CERTMIDDLE	$50	
Certifier's Last Name	FC	3463	CERTLAST	$50	
Certifier's Suffix Name	FD	3513	CERTSUFFIX	$10	
Certifier's last, first middle name	FE	3523	CERT_LFM_NAME	$50	
Certifier - Address	FF	3573	CERTADDRESS	$50	
Certifier - City or Town name	FG	3623	CERTCITYTEXT	$28	
Certifier - State literal	FH	3651	CERTSTATE	$28	State abbreviation
Certifier - Zip	FI	3679	CERTZIP	$9	
Certifier date signed	FJ	3688	CERTDATE	$8	MMDDYYYY
Filed date	FK	3696	FILEDATE	$8	MMDDYYYY
State, U.S. Territory or Canadian Province of Injury - literal	FL	3704	STINJURY	$28	State of injury or blank if natural (literal)
State, U.S. Territory or Canadian Province of Birth - literal	FM	3732	STATEBTH	$28	Literal value as reported

Layout for Ohio Mortality Download File

Updated: 01/09/2023

Variable	.CSV Column	.TXT Position	Field Name	Format	Code structure description
Hispanic Code for Literal	FN	3760	DETHNIC5C	$3	https://www.cdc.gov/nchs/data/dvs/HispanicCodeTitles.pdf
ICD code 358 Selected cause list	FO	3763	ICDCODE358	5	See cause groupings file. To comply with WHO tabulation regulations
ICD code 113 Selected cause list	FP	3768	ICDCODE113	5	See cause groupings file. For analysis of general mortality and leading COD.
ICD code 130 Selected cause list	FQ	3773	ICDCODE130	5	See cause groupings file. For analysis of infant mortality and leading COD.
ICD code 39 Selected cause list	FR	3778	ICDCODE39	5	See cause groupings file. For tabulations in smaller geo areas.
Geocoded residence of decedent - MATCH CODE	FS	3783	GEOCODED_MATCHCODE	$5	GEOCODED_ variables are geocoded results of resident address of decedent
Geocoded residence of decedent - QUALITY CODE	FT	3788	GEOCODED_QUALITYCODE	$5	Quality indicator
Geocoded residence of decedent - STATE	FU	3793	GEOCODED_CENSUSSTATE	$2	
Geocoded residence of decedent - COUNTY CODE	FV	3795	GEOCODED_OHCOUNTYCODE	$3	County Fips code
Geocoded residence of decedent - COUNTY NAME	FW	3798	GEOCODED_OHCOUNTYNAME	$10	
Geocoded residence of decedent - SCHOOL DISTRICT CODE	FX	3808	GEOCODED_SCHOOLDISTRICTCODE	$6	See School District code document
Geocoded residence of decedent - MUNICIPALITY CODE	FY	3814	GEOCODED_MUNICIPALCODE	$5	City FIPS code
Geocoded residence of decedent - MUNICIPALITY NAME	FZ	3819	GEOCODED_MUNICIPALNAME	$30	City
Geocoded residence of decedent - TOWNSHIP CODE	GA	3849	GEOCODED_OHTOWNSHIPCODE	$5	Township code
Geocoded residence of decedent - TOWNSHIP NAME	GB	3854	GEOCODED_OHTOWNSHIPNAME	$20	
Geocoded residence of decedent	GC	3874	GEOCODED_OHHOUSE02	$3	
Geocoded residence of decedent	GD	3877	GEOCODED_OHHOUSE12	$3	
Geocoded residence of decedent	GE	3880	GEOCODED_OHSENATE02	$3	
Geocoded residence of decedent	GF	3883	GEOCODED_OHSENATE12	$3	
Geocoded residence of decedent	GG	3886	GEOCODED_OHCONGRESS02	$2	
Geocoded residence of decedent	GH	3888	GEOCODED_OHCONGRESS12	$2	
Geocoded residence of decedent	GI	3890	GEOCODED_CENSUSTRACT2000	$6	
Geocoded residence of decedent	GJ	3896	GEOCODED_CENSUSTRACT2010	$6	
Geocoded residence of decedent	GK	3902	GEOCODED_CENSUSBLOCK2000	$4	
Geocoded residence of decedent	GL	3906	GEOCODED_CENSUSBLOCK2010	$4	
Geocoded residence of decedent	GM	3910	GEOCODED_LONGITUDE	$11	
Geocoded residence of decedent	GN	3921	GEOCODED_LATITUDE	$11	
Geocoded residence of decedent	GO	3932	GEOCODED_ADDRESSOUT	$40	Standardized street address
Geocoded residence of decedent	GP	3972	GEOCODED_CITYOUT	$30	Standardized city
Geocoded residence of decedent	GQ	4002	GEOCODED_STATEOUT	$2	Standardized state
Geocoded residence of decedent	GR	4004	GEOCODED_ZIPOUT	$10	Standardized zip
Geocoded residence of decedent	GS	4014	GEOCODED_LOCALHEALTHDIST	$5	Local Health District code
Occurrence district	GT	4019	REGISTRAR_PRDN	$4	
City of birth	GU	4023	BIRTH_CITY	$50	Literal entry for decedent's birth city
Certifier unique ID in EDRS	GV	4073	CERT_ID	$8	
Certifier license number	GW	4081	CERT_LICENSE	$15	
Funeral home unique ID in EDRS	GX	4096	FH_ID	$10	
Funeral home license number	GY	4106	FH_EST_NUM	$20	
Injury date	GZ	4126	INJURY_DATE	$10	MM/DD/YYYY
Pandemic reason activated by ODH as needed	HA	4136	PANDEMIC_REASON	$50	Could include flu, ebola, etc.
Pandemic cause of death activated by ODH as needed	HB	4186	IMMED_CAUSE_PANDEMIC	$1	
Pandemic cause of death activated by ODH as needed	HC	4187	CONSQ1_PANDEMIC	$1	
Pandemic cause of death activated by ODH as needed	HD	4188	CONSQ2_PANDEMIC	$1	
Pandemic cause of death activated by ODH as needed	HE	4189	CONSQ3_PANDEMIC	$1	
Pandemic cause of death activated by ODH as needed	HF	4190	OTH_SIGNF_CONDS_PANDEMIC	$1	
Armed forces branch	HG	4191	ARMED_BRANCH_SERVICE	$35	
Armed forces beginning date of service	HH	4226	ARMEDF_BEG_STRING	$10	MM/DD/YYYY
Armed forces ending date of service	HI	4236	ARMEDF_END_STRING	$10	MM/DD/YYYY
Armed forces discharge type	HJ	4246	ARMED_DISCHARGE_TYPE	$50	Honorable, Dishonorable, General, Other
Ohio resident indicator	HK	4296	OHIO_RESIDENT_INDICATOR	$1	A restatement of STATEC, 9 when Ohio resident (Use STATEC)
Ohio county historical code	HL	4297	OHIO_COUNTY	$2	Old Ohio county code 1-88 for Adams to Wyandot (Use COUNTYC)
Age in years	HM	4299	AGE_IN_YEARS	3	Calculated from AGE and AGETYPE
Postneonatal indicator	HN	4302	POSTNEONATAL_INDICATOR	$1	N = neonatal 1-27 days, P = postneonatal 28-364, U = not infant death
Ohio Public Health Information Warehouse indicator	HO	4303	OPHIW_INDICATOR	1	Detailed race derived from NCHS bridge and checkboxes in Race1:Race14
					1=White, 2=Black, 3=American Indian, 4=Chinese , 5=Japanese
					6=Hawaiian/Pacific Islander , 7=Filipino , 8=Other Asian , 9=Unknown
Hispanic	HP	4304	Hispanic	$1	Y, N, U derived from DethnicE and checkboxes Dethnic1-Dethnic5

Layout for Ohio Mortality Download File

Updated: 01/09/2023

Variable	.CSV Column	.TXT Position	Field Name	Format	Code structure description
Ohio Public Health Information Warehouse category	HQ	4305	OPHIW_CATEGORY	1	General race derived from OPHIW_INDICATOR
					1=White, 2=Black, 3=American Indian, 4=Asian/Pacific Islander, 9=Unknown
Leading cause 113 list	HR	4306	LEADINGCAUSE113	2	See ICD Cause Groupings 113 document
Leading cause 130 list	HS	4308	LEADINGCAUSE130	2	See ICD Cause Groupings 130 document
Geocoded location of death	HT	4310	GEOCODED_LOD_MATCHCODE	$5	Geocoded_LOD are the returned Geocode values for the place of death
Geocoded location of death	HU	4315	GEOCODED_LOD_QUALITYCODE	$5	
Geocoded location of death	HV	4320	GEOCODED_LOD_CENSUSSTATE	$2	
Geocoded location of death	HW	4322	GEOCODED_LOD_OHCOUNTYCODE	$3	
Geocoded location of death	HX	4325	GEOCODED_LOD_OHCOUNTYNAME	$10	
Geocoded location of death	HY	4335	GEOCODED_LOD_SCHOOLDISTRICTCODE	$5	
Geocoded location of death	HZ	4341	GEOCODED_LOD_MUNICIPALCODE	$5	
Geocoded location of death	IA	4346	GEOCODED_LOD_MUNICIPALNAME	$30	
Geocoded location of death	IB	4376	GEOCODED_LOD_OHTOWNSHIPCODE	$5	
Geocoded location of death	IC	4381	GEOCODED_LOD_OHTOWNSHIPNAME	$20	
Geocoded location of death	ID	4401	GEOCODED_LOD_OHHOUSE02	$3	Blank
Geocoded location of death	IE	4404	GEOCODED_LOD_OHHOUSE12	$3	
Geocoded location of death	IF	4407	GEOCODED_LOD_OHSENATE02	$3	Blank
Geocoded location of death	IG	4410	GEOCODED_LOD_OHSENATE12	$3	
Geocoded location of death	IH	4413	GEOCODED_LOD_OHCONGRESS02	$2	Blank
Geocoded location of death	II	4415	GEOCODED_LOD_OHCONGRESS12	$2	
Geocoded location of death	IJ	4417	GEOCODED_LOD_CENSUSTRACT2000	$6	
Geocoded location of death	IK	4423	GEOCODED_LOD_CENSUSTRACT2010	$6	
Geocoded location of death	IL	4429	GEOCODED_LOD_CENSUSBLOCK2000	$4	
Geocoded location of death	IM	4433	GEOCODED_LOD_CENSUSBLOCK2010	$4	
Geocoded location of death	IN	4437	GEOCODED_LOD_LONGITUDE	$11	
Geocoded location of death	IO	4448	GEOCODED_LOD_LATITUDE	$11	
Geocoded location of death	IP	4459	GEOCODED_LOD_ADDRESSOUT	$60	
Geocoded location of death	IQ	4519	GEOCODED_LOD_CITYOUT	$30	
Geocoded location of death	IR	4549	GEOCODED_LOD_STATEOUT	$2	
Geocoded location of death	IS	4551	GEOCODED_LOD_ZIPOUT	$10	
Geocoded location of death	IT	4561	GEOCODED_LOD_LOCALHEALTHDIST	$5	
Geocoded location of injury	IU	4566	GEOCODED_LOI_MATCHCODE	$5	
Geocoded location of injury	IV	4571	GEOCODED_LOI_QUALITYCODE	$5	Geocoded_LOI are returned Geocode values for place of injury (when applicable and known)
Geocoded location of injury	IW	4576	GEOCODED_LOI_CENSUSSTATE	$2	
Geocoded location of injury	IX	4578	GEOCODED_LOI_OHCOUNTYCODE	$3	
Geocoded location of injury	IY	4581	GEOCODED_LOI_OHCOUNTYNAME	$10	
Geocoded location of injury	IZ	4591	GEOCODED_LOI_SCHOOLDISTRICTCODE	$6	
Geocoded location of injury	JA	4597	GEOCODED_LOI_MUNICIPALCODE	$5	
Geocoded location of injury	JB	4602	GEOCODED_LOI_MUNICIPALNAME	$30	
Geocoded location of injury	JC	4632	GEOCODED_LOI_OHTOWNSHIPCODE	$5	
Geocoded location of injury	JD	4637	GEOCODED_LOI_OHTOWNSHIPNAME	$20	
Geocoded location of injury	JE	4657	GEOCODED_LOI_OHHOUSE02	$3	
Geocoded location of injury	JF	4660	GEOCODED_LOI_OHHOUSE02	$3	
Geocoded location of injury	JG	4663	GEOCODED_LOI_OHSENATE02	$3	
Geocoded location of injury	JH	4666	GEOCODED_LOI_OHSENATE12	$3	
Geocoded location of injury	JI	4669	GEOCODED_LOI_OHCONGRESS02	$2	
Geocoded location of injury	JJ	4671	GEOCODED_LOI_OHCONGRESS12	$2	
Geocoded location of injury	JK	4673	GEOCODED_LOI_CENSUSTRACT2000	$6	
Geocoded location of injury	JL	4679	GEOCODED_LOI_CENSUSTRACT2010	$6	
Geocoded location of injury	JM	4685	GEOCODED_LOI_CENSUSBLOCK2000	$4	
Geocoded location of injury	JN	4689	GEOCODED_LOI_CENSUSBLOCK2010	$4	
Geocoded location of injury	JO	4693	GEOCODED_LOI_LONGITUDE	$11	
Geocoded location of injury	JP	4704	GEOCODED_LOI_LATITUDE	$11	
Geocoded location of injury	JQ	4715	GEOCODED_LOI_ADDRESSOUT	$60	
Geocoded location of injury	JR	4775	GEOCODED_LOI_CITYOUT	$30	
Geocoded location of injury	JS	4805	GEOCODED_LOI_STATEOUT	$2	
Geocoded location of injury	JT	4807	GEOCODED_LOI_ZIPOUT	$10	

Layout for Ohio Mortality Download File

Updated: 01/09/2023

Variable	.CSV Column	.TXT Position	Field Name	Format	Code structure description
Geocoded location of injury	JU	4817	GEOCODED_LOI_LOCALHEALTHDIST	$5	
Affidavit added to original death record?	JV	4822	AFFIDAVIT_PRESENT	$1	Y or blank
Age type	JW	4823	AGE_TYPE	$15	Literal or 1=Years, 2=Months, 3=Weeks, 4=Days, 5=Hours, 6=Minutes
Alias 1 name	JX	4838	ALIAS_1_NAME	$100	
Is an alias present?	JY	4938	ALIAS_1_PRESENT	$1	Y, N, or blank
Alias 2 name	JZ	4939	ALIAS_2_NAME	$100	
Is an alias 2 present?	KA	5039	ALIAS_2_PRESENT	$1	Y, N, or blank
Alias 3 name	KB	5040	ALIAS_3_NAME	$100	
Is an alias 3 present?	KC	5140	ALIAS_3_PRESENT	$1	Y, N, or blank
Signed by attending physician	KD	5141	ATT_PHY_SIG	$1	Y or blank
Birth country	KE	5142	BIRTH_COUNTRY	$50	Literal value, see field BPLACE_CNT for country FIPS code
Did birth occur inside USA?	KF	5192	BIRTH_IN_US	$1	Y, N, U
Was birth record matched to death record?	KG	5193	BIRTH_MATCHED	$1	Y, N, or blank
Birth state file number if outside of Ohio	KH	5194	BIRTH_OOS_SFN_OOS	$13	Out of state birth record infant death links to YYYYSSFFFFFF
Birth district number if in Ohio	KI	5207	BIRTH_PRDN	$4	Incomplete data, primarily for infant deaths
Burial permit approver location	KJ	5211	BRL_PMT_APRV_LOC	$10	
Burial permit district number	KK	5221	BURIAL_PERMIT_DIST_NUM	$4	
Burial permit approval date	KL	5225	BURIAL_PERMIT_OK_DATE	$10	
Burial permit provisional requested	KM	5235	BURIAL_PERMIT_PROV_REQ	$1	
Burial permit reason	KN	5236	BURIAL_PERMIT_REASON_NOT	$70	
Burial permit registration	KO	5306	BURIAL_PERMIT_REGIST	$70	
Unique case file number in EDRS	KP	5376	CASE_FILE_NUMBER	$11	Internal EDRS number
Case started by	KQ	5387	CASE_STARTED_BY	$50	
Disposition place address	KR	5437	CEM_ADDRESS	$50	
Disposition place country	KS	5487	CEM_COUNTRY	$20	
Disposition place county	KT	5507	CEM_COUNTY	$40	
Disposition place facility name	KU	5547	CEM_NAME	$50	
Cemetery grave number	KV	5597	CEM_VET_GRAVE	$30	
Cemetery lot number	KW	5627	CEM_VET_LOT_NUM	$30	
Cemetery section number	KX	5657	CEM_VET_SECTION	$30	
Cemetery zip	KY	5687	CEM_ZIP	$9	
Certifier first middle last name	KZ	5696	CERT_NAME_FML	$150	
Certifier title	LA	5846	CERT_TITLE	$50	
Certifier type in EDRS	LB	5896	CERT_TYPE_CODE	$1	1 = Paper, 2 = Electronic
Date completed at coroner's office	LC	5897	COR_COMPL_DATE	$10	MM/DD/YYYY
User who completed record at coroner's office	LD	5907	COR_COMPL_USER	$30	
Is coroner information complete?	LE	5937	COR_COMPLETE	$1	Y or blank
Is certifier electronic or paper?	LF	5938	COR_PHY_PAPER	$1	E or P
Did coroner sign/certify record?	LG	5939	COR_PHY_SIG	$1	Y or blank
Unique coroner case number	LH	5940	CORONER_CASE_NUM	$15	Enter in Coroner's format
User name who created the record	LI	5955	CREATE_USERNAME	$25	
Cremation permit approval indicator	LJ	5980	CREMATION_PERMIT_APPR	$1	
Cremation permit approved date	LK	5981	CREMATION_PERMIT_DATE	$10	
Date of death	LL	5991	DATE_OF_DEATH	$10	MM/DD/YYYY
Date signed by pronouncing certifier	LM	6001	DATE_PRO_SIG	$10	MM/DD/YYYY
Date pronounced dead	LN	6011	DATE_PRONOUNCED	$10	MM/DD/YYYY
City of death code	LO	6021	DEATH_CITY_FIPS	$5	5 digit FIPS code for city of death, literal in field CITYTEXT_D
State of death code	LP	6026	DEATH_STATE_CODE	$2	OH for deaths in Ohio, blank otherwise (death occurred outside Ohio)
State of death FIPS code	LQ	6028	DEATH_STATE_FIPS	$2	OH for deaths in Ohio, blank otherwise (death occurred outside Ohio)
Disposition type	LR	6030	DISPOSITION	$30	Burial, Cremation, Removal from state, Donation, Entombment
Disposition date	LS	6060	DISPOSITION_DATE	$10	MM/DD/YYYY
Decedent's date of birth string	LT	6070	DOB_STRING	$10	MM/DD/YYYY
ODH image document ID	LU	6080	DOCUMENTID	$50	Internal processing variable
Is date of death actual, approximate, court determined or presumed?	LV	6130	DOD_KNOWN	$20	
Physician signature date (non-coroner)	LW	6150	DOD_SIGNED_DATE	$10	MM/DD/YYYY
Injury time approximate?	LX	6160	DOINJURY_KNOW	$25	Y, N or blank
Date physician cause was entered in EDRS (non-coroner)	LY	6185	DR_COMPL_DATE	$10	MM/DD/YYYY

Layout for Ohio Mortality Download File

Updated: 01/09/2023

Variable	.CSV Column	.TXT Position	Field Name	Format	Code structure description	
User at physician office who entered in EDRS	LZ	6195	DR_COMPL_USER	$30		
Education level of decedent	MA	6225	EDUCATION	$50	Literal value for DEDUC	
Ethnicity	MB	6275	ETHNIC_YESNO	$1	Y, N, U, or blank	
Location of death -- apartment number	MC	6276	FAC_APT_NO	$10		
Location of death -- county code	MD	6286	FAC_CNTY_NCHS	$4	State code	
Location of death -- state abbreviation	ME	6290	FAC_STATE	$50	State abbreviation	
Location of death -- ID in EDRS	MF	6340	FACID	$10	EDRS processing variable	
Location of death -- facility name	MG	6350	FAC_NAME	$200		
Location of death -- city	MH	6550	FAC_CITY	$50		
Location of death -- county	MI	6600	FAC_COUNTY	$50		
Location of death -- address	MJ	6650	FAC_ADDRESS	$50		
Location of death -- zip	MK	6700	FAC_ZIP	$9		
Location of death -- national provider index	ML	6709	FAC_NPI	$15	Sparsely completed	
Location of death -- facility code	MM	6724	FAC_INST_CODE	$10	Unique facility code in EDRS app	
Funeral home completed date	MN	6734	FH_COMPL_DATE	$10		
Funeral home completed by user	MO	6744	FH_COMPL_USER	$30		
Funeral home complete status	MP	6774	FH_COMPLETE	$1		
Funeral home director name	MQ	6775	FH_DIRECT_NAME	$50		
Autopsy findings available to complete cause of death?	MR	6825	FINDINGS_USED	$1	Y, N, X or blank	
Funeral Contact Name	MS	6826	FUN_CONTACT_NAME	$50		
Funeral license number	MT	6876	FUNER_LICENSE	$20		
Funeral sign details	MU	6896	FUNER_SIGN	$1		
Funeral signed date	MV	6897	FUNER_SIGN_DATE	$10		
Funeral home completed date	MW	6907	FUNERAL_HOME_DATE	$10		
Funeral home flag	MX	6917	FUNERAL_HOME_FLAG	$1		
Informant address	MY	6918	INFORMANT_ADDRESS	$50		
Informant apt no	MZ	6968	INFORMANT_APT_NO	$10		
Informant city	NA	6978	INFORMANT_CITY	$50		
Informant country	NB	7028	INFORMANT_COUNTRY	$40		
Informant name	NC	7068	INFORMANT_NAME_F	$50		
Informant name	ND	7118	INFORMANT_NAME_L	$50		
Informant name	NE	7168	INFORMANT_NAME_M	$50		
Informant name	NF	7218	INFORMANT_NAME_SUF	$10		
Informant state	NG	7228	INFORMANT_STATE	$50		
Informant zip	NH	7278	INFORMANT_ZIP	$9		
Injury city FIPS	NI	7287	INJURY_CITY_FIPS	$5		
Injury country literal	NJ	7292	INJURY_COUNTRY	$50		
Injury country FIPS	NK	7342	INJURY_COUNTRY_FIPS	$2		
Injury date range	NL	7344	INJURY_DATE_KNOWN	$25	Literal range as entered by certifier	
Injury date	NM	7369	INJURY_DATE_STRING	$10	MM/DD/YYYY	
Injury location	NN	7379	INJURY_LOCAT	$100		
Injury location apartment	NO	7479	INJURY_LOCAT_APT_NO	$10		
Injury location state FIPS	NP	7489	INJURY_STATE_FIPS	$2	2 letter postal fips cod	
Injury location state ID	NQ	7491	INJURY_STATEID	$10	No data of use here	
Injury time approximate?	NR	7501	INJURY_TIME	$20		
Injury time AM/PM	NS	7521	INJURY_TIME_INDIC	$10		
Injury time military	NT	7531	INJURY_TIME_MIL	$5		
Transportation injury?	NU	7536	INJURY_TRANSP	$1	Y, N, U or blank	
Injury location zip	NV	7537	INJURY_ZIP	$9		
INTJ flag	NW	7546	INTJ_SENT	$1	EDRS processing variable	
Local file number	NX	7547	LOCAL_FILE_NUMBER	$15	Unique EDRS record number	
Local registrar number	NY	7562	LOCAL_REG_NUMBER	$15	Unique death record number used by local health dept's	
Manner of death ID (this does not line up with Manner,	NZ	7577	MANNER_DEATHID	$10	2	Accident
users should use Manner, this is a processing variable)					3	Suicide
					4	Homicide
					5	Pending investigation
					6	Could not be determined

Layout for Ohio Mortality Download File

Updated: 01/09/2023

Variable	.CSV Column	.TXT Position	Field Name	Format	Code structure description
				8	Natural
Name of user who last modified the record	OA	7587	MODIFY_USER_NAME	$50	
ID of user who last modified the record	OB	7637	MODIFY_USERID	$10	
Date sent to NCHS	OC	7647	NCHS_DATE	$10	
NCHS flag	OD	7657	NCHS_FLAG	$1	
Pending investigation?	OE	7658	PEND_INVESTIGAT	$1	Y, N
Disposition permit number	OF	7659	PERMIT_NUMBER	$15	
Disposition permit printed date	OG	7674	PERMIT_PRINT_DATE	$10	
EDRS unique code for physician location	OH	7684	PHY_LOC_CODE	$8	EDRS processing variable
EDRS description of physician location	OI	7692	PHY_LOCATION	$50	
Place of death description	OJ	7742	PLACE_DEATH	$40	Literal entry similar to the code DPLACE
Place of death inside city?	OK	7782	PLACE_DEATH_IN_CITY	$1	Y, N
Race not obtainable?	OL	7783	RACE_NOT_OBTAINABLE	$1	N
Race refused?	OM	7784	RACE_REFUSE	$1	N
Race unknown?	ON	7785	RACE_UNKNOWN	$1	N
Record status	OO	7786	RECORD_STATUS	$30	Filed or Registered
Status of medical info	OP	7816	RECORD_STATUS_MED	$30	Complete or Paper
Status of personal info	OQ	7846	RECORD_STATUS_PERS	$30	Complete or Pending
Local registrar reason rejected	OR	7876	REG_REASON	$75	Local registrar processing variable
Local registrar filed?	OS	7951	REG_SIG	$1	Y
Local registrar district number	OT	7952	REGISTRAR_DIST_NO	$4	
Local registrar name	OU	7956	REGISTRAR_NAME	$50	
Local registrar umbrella PRDN code	OV	8006	REGISTRAR_UMB_PRDN	$4	
Supplementary medical info present?	OW	8010	SUPPLEMENT_PRESENT	$1	EDRS processing variable, Y or blank
Time of death	OX	8011	TIME_OF_DEATH_AP	$4	Not in military time format
Time of death indicator	OY	8015	TIME_OF_DEATH_AP_IND	$2	Blank, AM or PM
Time of death range	OZ	8017	TIME_OF_DEATH_RANGE	$25	Can be a range in time (e.g., Early AM) when exact time not known
Trade call funeral home address	PA	8042	TRADE_ADDRESS	$50	
Trade call funeral home used	PB	8092	TRADE_CALL	$200	
Trade call funeral home city	PC	8292	TRADE_CITY	$50	
Trade call funeral home state	PD	8342	TRADE_STATE	$50	
Trade call funeral home used	PE	8392	TRADE_YN	$1	
Trade call funeral home zip	PF	8393	TRADE_ZIP	$10	
User location	PG	8403	USERLOCATION	$10	
Signed by VS clerk	PH	8413	VS_CLERK_SIGNED	$1	Y if the handwritten cause was data entered by a state VS clerk
Data signed by VS clerk	PI	8414	VS_CLERK_SIGNED_DATE	$10	Date the handwritten cause was entered by a state VS clerk
ICD code	PJ	8424	RAC_ICDCODE1	$4	ICD 10 codes for the decedent are listed here
ICD code	PK	8428	RAC_ICDCODE2	$4	
ICD code	PL	8432	RAC_ICDCODE3	$4	
ICD code	PM	8436	RAC_ICDCODE4	$4	
ICD code	PN	8440	RAC_ICDCODE5	$4	
ICD code	PO	8444	RAC_ICDCODE6	$4	
ICD code	PP	8448	RAC_ICDCODE7	$4	
ICD code	PQ	8452	RAC_ICDCODE8	$4	
ICD code	PR	8456	RAC_ICDCODE9	$4	
ICD code	PS	8460	RAC_ICDCODE10	$4	
ICD code	PT	8464	RAC_ICDCODE11	$4	
ICD code	PU	8468	RAC_ICDCODE12	$4	
ICD code	PV	8472	RAC_ICDCODE13	$4	
ICD code	PW	8476	RAC_ICDCODE14	$4	
ICD code	PX	8480	RAC_ICDCODE15	$4	
ICD code	PY	8484	RAC_ICDCODE16	$4	
ICD code	PZ	8488	RAC_ICDCODE17	$4	
ICD code	QA	8492	RAC_ICDCODE18	$4	
ICD code	QB	8496	RAC_ICDCODE19	$4	
ICD code	QC	8500	RAC_ICDCODE20	$4	
VER_SM	QD	8504	VER_SM	$4	NCHS version number of SuperMicar

Layout for Ohio Mortality Download File

Updated: 01/09/2023

Variable	.CSV Column	.TXT Position	Field Name	Format	Code structure description
VER_200	QE	8508	VER_200	$4	NCHS version number of Micar 100/200
VER_ACTR	QF	8512	VER_ACTR	$4	NCHS version number of Acme/Transax
Injury state	QG	8516	INJURY_STATE	$40	State, US Territory or Canadian Province of injury -- literal
Age per NCHS	QH	8556	AgeNCHS	5	Ten year age groups values 1-11, 0, 1-4, 5-14, 15-24, ... 75-84, 85+
Age NCI	QI	8561	AgeNCI	5	Five year age groups values 1-19, 0, 1-4, 5-9, 10-14, ... 80-84, 85+
Age STD	QJ	8566	AgeSTD	5	Age group values 1-11, 0-9, 10-14, 15-19, ... 40-44, 45-54, 55-64, 65+
Cancer death	QK	8571	CancerDeath	2	Cancer grouping derived from ACME_UC ICD codes, see cancer group listing
Traumatic Brain Injury Indicator	QL	8573	TBIInd	$3	Derived from ACME_UC ICD code, Yes or No
Violent death case finding?	QM	8576	ViolentDeathCasefinding	$30	Derived from ICD code, for use by Ohio Violent Death Reporting System, values like "Suicide"
External injury indicated?	QN	8606	ExternalInjuryInd	$3	Derived from ACME_UC ICD code by CDC injury matrix program, yes or no
External Injury Mechanism	QO	8609	ExternalInjuryMechanism	$50	Derived from ACME_UC ICD code by CDC injury matrix program, Natural or other value
External Injury Mechanism Group	QP	8659	ExternalInjuryMechanismGroup	$50	Derived from ACME_UC ICD code by CDC injury matrix program, Natural or other value
External Injury Intent (similar to manner, but based on ACME_UC)	QQ	8709	ExternalInjuryIntent	$50	Derived from ACME_UC ICD and is similar to Manner provided by certifier
Diabetes indicator	QR	8759	DiabetesInd	$3	No or Yes if indicated by specific ICD code
Chronic disease indicator	QS	8762	ChronicDiseaseInd	$3	No or Yes if indicated by specific ICD code
AgeBirth	QT	8765	AgeBirth	5	Age group values 1=0-14, 2=15-17, 3=18-19, 4=20-24, 5=25-29, ... 8=40-44, 9=45+
Alcohol induced indicator	QU	8770	AlcoholInducedInd	$3	No or Yes if ICD code T51.0 - 51.9
Drug induced indicator	QV	8773	DrugInducedInd	$3	No or Yes if ICD code T40.1 - T41.1, T42.3, T42.4, T51.0, T51.1, T51.9
Enterocolitis C Find	QW	8776	EnterocolitisCFind	$3	No or Yes if indicated by specific ICD code
Heroin indicator	QX	8779	HeroinInd	$3	No or Yes if ICD code T40.1
Benzodiazepines indicated	QY	8782	BenzosInd	$3	No or Yes if ICD code T42.4
Other UnSpecified Drugs indicated	QZ	8785	OthUnSpDrugsInd	$3	No or Yes if ICD code T50.9
Other opioids indicated	RA	8788	OthOpioidsInd	$3	No or Yes if ICD code T40.2
Methodone indicated	RB	8791	MethadoneInd	$3	No or Yes if ICD code T40.3
Other Synthetic Narcotic indicated	RC	8794	OthSynNarcInd	$3	No or Yes if ICD code T40.4
Cocaine indicated	RD	8797	CocaineInd	$3	No or Yes if ICD code T40.5
Other narcotic indicated	RE	8800	OtherNarcsInd	$3	No or Yes if ICD code T40.6
Hallucinogen indicated	RF	8803	HallucInd	$3	No or Yes if ICD code T40.7, T40.8, T40.9
Barbituates indicated	RG	8806	BarbsInd	$3	No or Yes if ICD code T42.3
Ethanol indicated	RH	8809	EthanolInd	$3	No or Yes if ICD code T51.0
Methanol indicated	RI	8812	MethanolInd	$3	No or Yes if ICD code T51.1
Alcohol unspecified	RJ	8815	AlcUnspecInd	$3	No or Yes if ICD code T51.9
Opiates indicated	RK	8818	OpiatesInd	$3	No or Yes if ICD code T40.0 - T40.4, T40.6
Prescription opiates indicated	RL	8821	PresOpiatesInd	$3	No or Yes if ICD code T40.2 - T40.4, T40.6
Fentanyl indicated	RM	8824	FentanylInd	$3	No or Yes if 'fentanyl' was found in literal COD. Excludes 'carfentanil'
Fentanyl and Analogues indicated	RN	8827	FentanylAnaloguesInd	$3	No or Yes if 'fentanyl' or analogues including 'carfentanil' in literal COD.
Carfentanil indicated	RO	8830	CarfentanilInd	$3	No or Yes if 'carfentanil' was found in literal COD.
Psychostimulants with abuse potential indicator	RP	8833	MethamphetamineInd	$3	No or Yes if ICD code T436
Designer Opioids indicated	RQ	8836	DesignerOpioidsInd	$3	No or Yes if U-47700, U-504888, W-18, AH-7921, or MT-45 in literal COD.
Commonly Prescribed Opioids indicated	RR	8839	CommonlyPrescribedOpioidsInd	$3	No or Yes if ICD code T402 or T403
Age ODRS	RS	8842	AgeODRS	5	Age group values 1-9: 0-4, 5-9, 10-14, 15-19, 20-29, 30-39, 40-49, 50-59, 60+
Age EHARS	RT	8847	AgeEHARS	5	Age group values 1-12: 0-12, 13-14, 15-19, 20-24, ... 50-54, 55-64, 65+
Age Youth	RU	8852	AgeYouth	5	Age group values 0-6: 0=neonates, 1=postneonates, 2=1-4, 3=5-9, 4=10-14, 5= 15-17, 6=18+
MMWR Epidemiologic Year	RV	8857	MMWRYear	4	CDC constructed year for epidemiologic use, close but not the calendar year
MMWR Epidemiologic Week	RW	8861	MMWRWeek	2	CDC constructed week for epidemiologic use, values range from 1-53, usually 52 per year
Occupation -- Code	RX	8863	OCCUPC4	$4	Occupation codes from NIOSH, 2010 version
Industry -- Code	RY	8867	INDUSTC4	$4	Industry codes from NIOSH, 2012 version

Important: the 'data view' is a smaller file, with fewer fields as compared to the large 'download' file

DataOhio Data Description: ImpactSIIS COVID-19 Vaccination Data

Patient- and Vaccination event-level level data included in DataOhio portal datasets

Core Data Elements	Description
Patient / Vaccine Recipient Information	
RECIP_ID	Unique ImpactSIIS patient ID for vaccine recipient
RECIP_FIRST_NAME	Patient first name
RECIP_MIDDLE_NAME	Patient middle name
RECIP_LAST_NAME	Patient last name
RECIP_DOB	Patient date of birth (Format: YYYY-MM-DD)
RECIP_DOD	Patient deceased date (Format: YYYY-MM-DD)
RECIP_SEX	Patient sex (Format: M=male, F=female, O=other, U=unknown)
RECIP_RACE_1	Patient race 1 (most recently submitted race first)
RECIP_RACE_2	Patient race 2
RECIP_RACE_3	Patient race 3
RECIP_ETHNICITY	Patient ethnicity
RECIP_LANGUAGE	Patient primary language
RECIP_TPO_DESCR	Target population/occupation of recipient, for pandemic response
RECIP_ADDRESS_STREET	Patient primary address street (e.g., 123 Main St.)
RECIP_ADDRESS_STREET_2	Second line of patient primary address street (e.g., Apt B)
RECIP_ADDRESS_CITY	Patient primary address city
RECIP_ADDRESS_STATE	Patient primary address state
RECIP_ADDRESS_ZIP	Patient primary address postal/zip code
RECIP_ADDRESS_COUNTY	Patient primary address county Name
RECIP_ADDRESS_COUNTY_FIPS	Patient primary address county FIPS (e.g., 39xxx for Ohio counties)
RECIP_PHONE	Patient primary (most recent) phone number
RECIP_EMAIL	Patient primary email
Vaccination Information	
VACC_EVENT_ID	Unique ID for vaccination event
VACC_DATE	Date vaccination was given to patient (Format: YYYY-MM-DD)
VACC_CVX	CVX code for vaccine

RELATOR'S EXHIBIT

B

VACC_MVX	Manufacturer code for vaccine
VACC_NAME	Name of vaccine
VACC_HISTORICAL	Dose reported as historical (Y=Historical, N=Administered)
VACC_DOSE_NUMBER	Covid-19 vaccine Dose number
VACC_FUNDING SOURCE	Vaccine funding source (e.g., Pandemic, VFC)
Provider Information	
PROVIDER_ORG_SITE_TYPE	Administering/Reporting Organization Type (e.g., LHD, Pharmacy)
PROVIDER_ORG_ID	Administering/Reporting Organization ID
PROVIDER_ORG_NAME	Administering/Reporting Organization Name
PROVIDER_FACILITY_NAME	Administering/Reporting Facility Name
PROVIDER_FACILITY_ZIP	Zip code of administering/reporting Facility
IIS_VINTAGE	ImpactSIIS data "as of date"

Each record (row) represents 1 vaccination event. If the person received >1 covid-19 dose, their demographic info is repeated on each row.

Thomas Connors

From: Kathryn Huwig <khuwig@gmail.com> on behalf of Kathryn Huwig
Sent: Friday, May 19, 2023 4:40 PM
To: Tom Connors
Subject: Fwd: Public Records Request

Begin forwarded message:

From: "Socrates.Tuch@odh.ohio.gov" <Socrates.Tuch@odh.ohio.gov>
Subject: RE: Public Records Request
Date: May 19, 2023 at 4:19:47 PM EDT
To: Kathryn Huwig <khuwig@gmail.com>

Ms. Huwig,

Broad, categorical requests, even when time limited, such as the one you made, are overbroad. The systems are person-based and information is recalled by person. If are requesting information for a specific person or persons, feel free to pursue the procedures outlined previously.

On behalf of the Department, I'm sorry the Department could not assist you further.

Sincerely,
Socrates Tuch
Socrates H. Tuch
Senior Counsel/Privacy Officer
Ohio Department of Heath

Ohio Department of Health **For information about COVID-19:**
coronavirus.ohio.gov
1-833-4-ASK-ODH

From: Kathryn Huwig <khuwig@gmail.com>
Sent: Friday, May 19, 2023 3:22 PM
To: Tuch, Socrates <Socrates.Tuch@odh.ohio.gov>
Subject: Re: Public Records Request

RELATOR'S EXHIBIT C

Mr. Tuch,

Thanks for the point you are making. I believe it brings to the fore a misunderstanding which is leading to an unnecessary dispute.

The first request I am making is for a report from a database, which you contend is the creation of a record. I realize we differ on that, and that you are not willing to provide it.

However, my second request is for the 2021 ODMF and the 2021 CVD, which already exist as compilations of information from public records, and which are therefore themselves public records subject to disclosure under R.C. 149.43. Since they are existing records, there is no viable argument that your office would have to create a new record.

Given this clarification, I would ask you to reassess my second request since limiting the request to a one-year period should resolve your concern that the request is overbroad. Further I am willing to consider further revisions if you provide information regarding how these records are maintained. As discussed, surely there is a way that you can provide file or folder descriptions or similar information, without disclosing critical computer system configurations.

Again, I remain committed to work with you to resolve any issues in a manner consistent with the Public Records Act.

Thank you,
Kathryn Huwig

On May 19, 2023, at 12:34 PM, Socrates.Tuch@odh.ohio.gov wrote:

Ms. Huwig,

The Department understands your statement:

> I would clarify again that I am requesting "a compilation of information gathered from public records [which] is a separate public record subject to disclosure under R.C. 149.43." Kish v. Akron, 109 Ohio St. 3d 162, 168-69 (2006).

However, a careful reading of the *Kish* case makes clear that a public office is not obligated to create such a compilation in the first instance. If the public office creates a compilation, then that compilation is a public record. As repeatedly stated, no such compilation exists and ODH declines to create it.

After reviewing the below email exchange, and for the reasons stated therein, it appears that the Ohio Department of Health cannot accommodate your data request.

If you have future matters or concerns, feel free to contact me.

Sincerely,
Socrates H. Tuch
Socrates H. Tuch, MA, JD, CPM
Senior Counsel/Privacy Officer
Ohio Department of Heath

246 North High Street
Columbus, OH 43215
(614) 466-4882

<image001.jpg> **For information about COVID-19:**
coronavirus.ohio.gov
1-833-4-ASK-ODH

From: Kathryn Huwig <khuwig@gmail.com>
Sent: Friday, May 19, 2023 12:13 PM
To: Tuch, Socrates <Socrates.Tuch@odh.ohio.gov>
Subject: Re: Public Records Request

Mr Tuch,

I appreciate your patience in working through these issues and clarifying matters to avoid unnecessary disputes. It is very helpful that you acknowledged that you can redact what you consider to be exempt and provide the non-exempt information. I realize that that doesn't resolve our difference on whether a report from a database is creating a new record. However, it does mean that you can provide the Ohio Mortality Download File ("OMDF") and the ImpactSIIS COVID-19 Vaccination Dataset ("CVD") with redactions.

Unfortunately, we still have the issue as to whether a request for the OMDF and the CVD for certain years is improperly overbroad. To accommodate your concern on this point, I will revise my request for these records and request the OMDF and the CVD only for the year 2021.

I would consider accommodating further, but you have not provided a sufficient explanation of how these records are maintained for me to do so. Your position that file or folder descriptions for these computer records would disclose critical computer system configurations is not reasonable. Such information is equivalent to the indexing and file folders used for paper records. Given that computer records are replacing paper records, your position would effectively override the statutory duty of public offices to inform citizens how public records are maintained so they can revise their record requests.

I would clarify again that I am requesting "a compilation of information gathered from public records [which] is a separate public record subject to disclosure under R.C. 149.43." Kish v. Akron, 109 Ohio St. 3d 162, 168-69 (2006). The OMDF and the CVA are public records, subject to disclosure, and my request for these records for the year 2021 can't be fairly characterized as a request for a data dump. I would even consider further revising the request if you would explain how the records are maintained in folders and data files. I am not requesting paper records, which are rapidly becoming obsolete. I remain open and willing to work with you to resolve any issues in a manner consistent with the Public Records Act.

Thank you,
Kathryn Huwig

On May 18, 2023, at 2:28 PM, Socrates.Tuch@odh.ohio.gov wrote:

Ms. Huwig,

As explained, these are person-based systems and are indexed (categorized) accordingly.

What you are now requesting with your question about the file structure is an infrastructure record. "Infrastructure record" means any record that discloses the configuration of critical systems including, but not limited to, communication, computer, electrical, mechanical, ventilation, water, and plumbing systems, security codes, or the infrastructure or structural configuration of a building. R.C. 149.433(A). This is not public record and not subject to mandatory release or disclosure pursuant to R.C. 149.43. R.C. 149.433(B)(1). The file structure is part of the system configuration, and the Department declines to discuss the matter.

With respect, the Department is not required to create the custom report (data abstract) you originally requested and since the custom report does not exist, the Department does not have a responsive record for your original request. Your original request included data fields that could be used to identify the individual who is the subject of the information. These data fields include, but are not limited to, zip code, race, and date of birth. Even if these fields were removed, your request is still for a custom report that does not exist. And, as the requested report would not document the activities of ODH, there is no legal obligation for ODH to create such a custom data report.

Your subsequent request for what is colloquially referred to as a "data dump" is improperly overbroad. If you wish to review individual death certificates, you can visit a local health department vital statistics office and provide office with the name of the individual whose death is of interest. If you wish to obtain a certified copy, you will need to pay the fee prior to receipt of the copy. If you wish to obtain an immunization record, you will need the authorization of the individual who is subject of the information. If you obtain a HIPAA-compliant authorization, you can direct it to my attention, and I communicate with the appropriate personnel in providing you with the record.

Sincerely,

Socrates Tuch

Socrates H. Tuch
Senior Counsel/Privacy Officer
Ohio Department of Heath

<image001.jpg> **For information about COVID-19:**
coronavirus.ohio.gov
1-833-4-ASK-ODH

From: Kathryn Huwig <khuwig@gmail.com>
Sent: Thursday, May 18, 2023 11:21 AM
To: Tuch, Socrates <Socrates.Tuch@odh.ohio.gov>
Subject: Re: Public Records Request

Mr. Tuch,

So, you are saying that the Ohio Mortality Download File ("OMDF") (as well as the Vaccination Dataset) involves multiple records. Then, I need to know how these records are maintained to revise my request for these records to avoid your concern that it is overbroad. The general convention for maintaining computer records is storing information in a data file, which is contained in a folder or subfolder. The files could be maintained in different categories, such as by year, or location, or categories of persons. I need to know the folder and file structures and descriptions. I also need to know your office's convention regarding which categories are considered distinct records and which are considered information within a record (i.e. fields) so I can revise my request appropriately.

I am aware that your office considers providing a report from a database as being creation of a new record. While I do not share that view, I am attempting to accommodate to avoid an unnecessary dispute, by obtaining the OMDF and Vaccination Dataset for certain years. Unfortunately, this has lead to your concern that such a request is overbroad. Fortunately, the Ohio Legislature has provided a way for us to resolve that issue by requiring public offices to inform requesters of the manner in which records are maintained. As I'm sure you will agree, it is steps like this that avoid unnecessary disputes and the resulting wasted time and resources spent in court proceedings. Thank you for your efforts in this regard.

Kathryn Huwig

On May 17, 2023, at 4:51 PM, Socrates.Tuch@odh.ohio.gov wrote:

Ms. Huwig,

As previously explained, these are multiple records. And, as previously explained, the Department is not obligated to create custom reports or records and declines to do so. I was offering an alternative method of possibly obtaining the data you seek. I believe you are aware of the Ohio Department of Health's public warehouse. It has deidentified death data but no immunization data.

Sincerely,

Socrates Tuch

Socrates H. Tuch
Senior Counsel/Privacy Officer
Ohio Department of Heath

<image001.jpg> **For information about COVID-19:**
coronavirus.ohio.gov
1-833-4-ASK-ODH

From: Kathryn Huwig <khuwig@gmail.com>
Sent: Wednesday, May 17, 2023 4:30 PM
To: Tuch, Socrates <Socrates.Tuch@odh.ohio.gov>
Subject: Re: Public Records Request

Mr. Tuch,

I understand that you don't consider the individual date fields to be records. That's why I asked you in accordance with your duty under R.C. 149.43(B)(2) to describe the manner in which the relevant records are maintained by your office, so that I can revise my request. I need to know how your office categorizes the Ohio Mortality Download File ("OMDF") and the ImpactSIIS Covid-19 Vaccination Dataset ("ICVD") with regard to whether it is a single record, multiple records or part of a larger record.

As I'm sure you're aware "a compilation of information gathered from public records is a separate public record subject to disclosure under R.C. 149.43." Kish v. Akron, 109 Ohio St. 3d 162, 168-69 (2006). You say that my request for the OMDF and the ICVD for certain years is overbroad. Alright, then please describe how the

records are categorized, so I can revise my request to avoid that. If there are multiple records in the OMDF and ICVD, let me know what they are, so I can form my request accordingly. If they are individual records and do not contain multiple records, then I won't be overbroad since I will be asking for the only record that exists.

You say that I am asking for records that include personally identifiable information. I have specifically asked you to provide all information that is not exempt, and that you redact what you consider to be exempt as R.C. 149.43(B)(1) specifically allows (subject of course to my right to challenge incorrect redactions). Given the scope of my request, I have not asked for personally identifiable information, since your office will be redacting it.

You suggest that I am seeking a research dataset for which a public records request is ill-suited. However, R.C. 149.43(B)(4) precludes you from limiting the availability of public records based on what you believe is the intended use of the requested public records.

I would emphasize that I need you to describe the manner in which the requested records are maintained i.e. whether they are categorized as a single record, multiple records or part of a larger record in order to revise my request.

I look forward to hearing from you.
Kathryn Huwig

On May 17, 2023, at 1:56 PM, Socrates.Tuch@odh.ohio.gov wrote:

Ms. Huwig,

Individual data fields or data points are not records. They do not, in and of themselves, serve "to document the organization, functions, policies, decisions, procedures, operations, or other activities of the office." A death

certificate is a record. It may be viewed, and or a certified copy may be requested, at any local vital statistics registrar's office. R.C. 3705.23(A)(1). That an individual death certificate may be view and or obtained in this matter does not render the entire death database public record. Please see the *Walsh* case cited in the original response. An immunization record is protected health information and can only be obtained with the written authorization of the person who is the subject of the information. R.C. 3701.17(B). These are person-based systems, and the records are indexed accordingly. As indicated previously, your request has been for specific data rather than records. You then want the data organized into a specific record that meets your interests. Accordingly, your request is for a document which does not exist and does not serve to document the activities of ODH. Therefore, ODH is not obligated to create a document solely to satisfy the interest of a requester. R.C. 149.40

The modification you propose is predicated on a complete reproduction of an entire data set. Such "any and all records" requests are vague and overbroad. See Ohio R.C. 149.43(B)(2); see also, *State ex rel. Zidonis v. Columbus State Cmty. College*, 133 Ohio St.3d 122, 2012- Ohio-4228, 976 N.E.2d 861, ¶ 21; and *State ex rel. Zauderer v. Joseph*, 62 Ohio App.3d 752 (10th Dist. 1989). The courts have also found a request overly broad when it seeks what amounts to a complete duplication of a major category of a public office's records. See, e.g., *State ex rel. Dillery v. Icsman*, 92 Ohio St.3d

312, 2001-Ohio-193, 750 N.E.2d 156 (request for all records "containing any reference whatsoever" to requester was overly broad); *Kanter v. City of Cleveland Hts.*, Ct. of Cl. No. 2018-01092PQ, 2018-Ohio-4592, ¶ 8-12 (holding that a request for all "communications, messages, schedules, logs, and documents shared" regarding requester between City of Cleveland Heights and a newspaper for a specific date range was overbroad); *Gupta v. City of Cleveland*, Ct. of Cl. No. 2017-00840PQ, 2018-Ohio-3475, ¶ 25 (holding requests for "entire categories of records, such as 'complaints,' 'reports of safety violations,' 'communications,' and 'emails'" with no time specification or for multiple years overly broad). Accordingly, the Department cannot comply with your request.

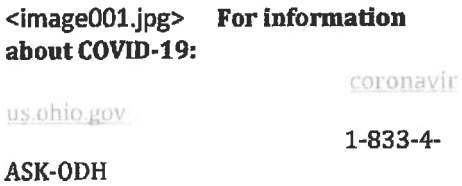
It appears you may be seeking some manner of research dataset. If this is so, the Ohio Public Records Law is ill-suited for obtaining such a dataset. The Ohio Department of Health has a process for receiving and review such requests. The process involves, in part, a review of the request by the impacted program(s), the ODH Data Governance Committee and the ODH Institutional Review Board.

If you wish to amend or modify your request, or if you wish to explore the research dataset process, feel free to let me know and I refer you to the appropriate personnel.

Sincerely,

Socrates Tuch

Socrates H. Tuch
Senior Counsel/Privacy Officer
Ohio Department of Heath



From: Kathryn Huwig <khuwig@gmail.com>
Sent: Wednesday, May 17, 2023 12:01 PM
To: Tuch, Socrates <Socrates.Tuch@odh.ohio.gov>
Subject: Re: Public Records Request

Mr. Tuch,

R.C. 149.43(B)(2) requires that you shall provide me with an opportunity to revise my request by informing me of the manner in which records are maintained by your office and accessed in the ordinary course of your office's duty. You're telling me that you don't consider the fields that I have requested to be separate records. So please tell me how you maintain your office's records related to the Ohio Mortality Download File ("OMDF") and the ImpactSIIS Covid-19 Vaccination Dataset. Is your office maintaining the OMDF and ICVD as single records or as multiple records (or possibly as part of a larger record). If they are maintained as multiple records, please describe how these records are categorized so that I may revise my request. As your namesake, Socrates, has told us "The beginning of wisdom is the definition of terms."

You have also said that my request includes protected health information. R.C. 149.43(B)(1) provides that if requested records include exempted information that your office provide all requested information that

is not exempt and notify me of any redaction or make redactions plainly visible. I would therefore request that you provide all non-exempted information or make any redactions plainly visible.

To resolve the issues you describe, I am revising my request to include the entire OMDF and ICVF database record(s) for the years and in the file format originally requested. I understand that you may redact what you consider to be exempted and I will address that matter as appropriate. I would maintain my request for information regarding the manner in which such records are maintained as described above, to inform me regarding any other issue that may arise.

Thank you for your prompt attention,
Kathryn Huwig

On May 16, 2023, at 3:00 PM, Socrates.Tuch@odh.ohio.gov wrote:

Ms. Huwig,

After a careful review of your below records request, the Ohio Department of Health has determined that no responsive record exists and, for the reasons articulated below, declines to create a record matching your description.

Please note that your request identifies information you are seeking, rather than specific, existing records of the Ohio Department of Health. The Ohio Public Records Act provides for access to records, but it does not obligate a public office to search for records containing selected information. *State ex rel. Fant v. Tober*, 8th Dist. No. 63737 (Apr. 28, 1993), 1993 Ohio App. LEXIS 2591, aff'd 68 Ohio St.3d 117 (1993). Further, a public office is under no duty to create new records by searching for and compiling information that may be of interest to the requester. *State ex rel. White v. Goldsberry*, 85 Ohio St.3d 153, 707 N.E.2d 496 (1999). The information systems you identified are not single records. Instead, they are compilations of existing records. R.C. 1347.01(F). Accordingly, information in a database or information system must be "compiled

and organized in a document created by a public official" to constitute a public record. *State, ex.re. Cincinnati Post, v. Schweikert*, (1988) 38 Ohio St. 3d 170, , 527 N.E.2d 1230, syllabus ¶ 1. This compilation of information must already exist for that compilation to be a public record. *State ex rel. Scanlon v. Deters*, 45 Ohio St. 3d. 376, 379, 544 N.E.2d 680 (1989).

Be advised that individually identifiable health information that may be in the possession of the Department will not be provided without specific authorization from the individual who is the subject of the information. R.C. 3701.17. Protected health information is any "information, in any form, . . . that describes an individual's past, . . . physical or mental health status or condition . . . if either of the following applies:" 1) the information reveals the identity of the individual who is the subject of the information; or 2) the information could be used to reveal

the identity of the individual who is the subject of the information, either by using the information alone or with other information that is available to predictable recipients of the information. R.C. 3701.17(A)(2). Information that is in a summary, statistical or aggregate form and that does not identify an individual is a public record and, upon request, shall be released by the Director of Health. R.C. 3701.17(C). A general authorization for the release of medical or other information is not sufficient for the release of information pursuant to R.C. 3701.17. Generally, the Department does not confirm or otherwise comment upon or discuss information in a manner that would identify an individual. To this end, after evaluating your data request, the Department has determined that the requested information could be used to reveal the identify of the individual who is the subject of the

information and therefore, you are requesting protected health information, the release of which is prohibited by law. *Walsh v. Ohio Dep't of Health*, 2022 Ohio 272, 183 N.E.3d 1281 (Ohio Ct. App. 2022).

With this email, the Ohio Department of Health considers your request responded to and will close its file. If you have any question, feel free to contact me.

Sincerely,

Socrates H. Tuch

Socrates H. Tuch, MA, JD, CPM
Senior Counsel/Privacy Officer
Ohio Department of Heath
246 North High Street
Columbus, OH 43215
(614) 466-4882

<image001.jpg> **For information about COVID-19:**

coronavirus.ohio.gov

1-833-4-ASK-ODH

From: Kathryn Huwig <khuwig@gmail.com>
Sent: Friday, May 12,

2023 11:33 AM
To: Tuch, Socrates <Socrates.Tuch@odh.ohio.gov>
Subject: Public Records Request

Hello Mr. Tuch,

I am making a public records request for mortality records (data) contained in the Ohio Mortality Download File accessible in the ODH Electronic Death Reporting System (EDRS) database and the EnterpriseDatawarehouseSecure database and vaccination records (data) from Ohio's ImpactSIIS COVID-19 Vaccination dataset. I request that these records be provided in a csv file format with column headings (electronic records).

From the ImpactSIIS COVID-19 Vaccination Database I am requesting all records contained in the following fields for the years 2020, 2021, 2022 and 2023:

RECIP_ID
RECIP_DOB
RECIP_DOD
RECIP_SEX
RECIP_RACE_1
RECIP_RACE_2
RECIP_RACE_3
RECIP_TPO_DESCR
RECIP_ADDRESS_ZIP
RECIP_ADDRESS_COUNTY

RECIP_ADDRESS_COUN
TY_FIPS
VACC_EVENT_ID
VACC_DATE
VACC_CVX
VACC_MVX
VACC_NAME
VACC_HISTORICAL
VACC_DOSE_NUMBER
VACC_FUNDING
SOURCE
PROVIDER_ORG_SITE_T
YPE
PROVIDER_ORG_ID
PROVIDER_ORG_NAME
PROVIDER_FACILITY_N
AME
PROVIDER_FACILITY_ZI
P
IIS_VINTAGE

From ODH's EDRS and EnterpriseDatawareho useSecure, I am requesting all records contained in the following fields from years 2017, 2018, 2019, 2020, 2021, 2022 and 2023:

DoD_Yr
Sex
Age
DoB_Yr
DoB_Mo
DoB_Dy
CityC
CountyC
StateC
CountryC
Limits
Marital
DPLACE
CoD
DoD_Mo
DoD_Dy
ToD
Manner
Man_UC
ACME_UC
EAC
AUTOP
AUTOPF
DINSTI
CityText_R
ZIP9_R
CountyText_R
DEthnicE

NCHSBridge
CoD1A
Interval1a
CoD1B
Interval1B
CoD1C
Interval1C
CoD1D
Interval1D
OtherCondition
FileDate
Pandemic_Reason
Immed_Cause_Pandemic
Consq1_Pandemic
Consq2_Pandemic
Consq3_Pandemic
Oth_Signf_Conds_Pande
mic
Age_In_Years
Hispanic
OPHIW_CATEGORY
LeadingCause113
LeadingCause130
DATE_OF_DEATH
RAC_ICDCode1
RAC_ICDCode2
RAC_ICDCode3
RAC_ICDCode4
RAC_ICDCode5
RAC_ICDCode6
RAC_ICDCode7
RAC_ICDCode8
RAC_ICDCode9
RAC_ICDCode10
RAC_ICDCode11
RAC_ICDCode12
RAC_ICDCode13
RAC_ICDCode14
RAC_ICDCode15
RAC_ICDCode16
RAC_ICDCode17
RAC_ICDCode18
RAC_ICDCode19
RAC_ICDCode20
CancerDeath
TBIInd
DiabetesInd
ChronicDiseaseInd
DrugIndusedInd
HeroinInd
OthOpioidInd
PresOpiateInd
FentanylInd
FentanylAnaloguesInd
CarfentanilInd
MethamphetamineInd
CommonlyPrescribedOpioi
dsInd

Thank you for your prompt attention,
Kathryn Huwig

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Thomas Connors

From: Socrates.Tuch@odh.ohio.gov
Sent: Tuesday, June 6, 2023 1:09 PM
To: Thomas Connors
Cc: Kathryn Huwig
Subject: RE: Kathryn Huwig's May 2023 Records Requests

Mr. Connors,

Thank you for reaching out. Ms. Huwig insisted on requesting custom reports that included PHI. ODH will not repeat the previous email exchange with Ms. Huwig since it appears you have read them. However, as a summation, Ms. Huwig is not entitled to obtain PHI as a public record and ODH is under no obligation to perform custom searches of its data systems in order to create previously non-existent custom reports. That ODH may have, as a courtesy, used system-external, third-party software to create a custom report in the past does not obligate ODH to so on an ongoing or future basis. Accordingly, ODH declines to create a custom report of data which only serves the interest of the requester and is not otherwise necessary to fulfill the mission of the Department.

As previously offered, if Ms. Huwig would like to request a copy of the Deceased Ohioans file, please let me know and I will refer the request. Ms. Huwig may also explore de-identified data afforded in the ODH Public Data Warehouse Mortality Module.

On behalf of ODH, I hope this has been helpful.

Sincerely,

Socrates H. Tuch

Socrates H. Tuch, MA, JD, CPM
Senior Counsel/Privacy Officer
Ohio Department of Heath
246 North High Street
Columbus, OH 43215
(614) 466-4882

Ohio Department of Health

For information about COVID-19:
coronavirus.ohio.gov
1-833-4-ASK-ODH

From: Thomas Connors <tconnors@warnermendenhall.com>
Sent: Tuesday, June 6, 2023 11:46 AM
To: Tuch, Socrates <Socrates.Tuch@odh.ohio.gov>
Cc: Kathryn Huwig <khuwig@gmail.com>
Subject: Kathryn Huwig's May 2023 Records Requests

Mr. Tuch,

RELATOR'S EXHIBIT
D

I am writing as counsel for Kathryn Huwig regarding the Department of Health's ("DOH") denial of her May 2023 public records requests for 2021 mortality and Covid-19 vaccination reports and/or datasets. I wanted to ensure that all efforts to resolve this dispute are exhausted before seeking mandamus relief from the Supreme Court.

You have denied Huwig's request for reports from the subject datasets asserting that they require the creation of records. Ohio law provides that if DOH's computers are already programmed to produce the requested reports, then such reports are considered existing records. Since DOH has provided similar reports in the past, it does not appear that this basis for denial is viable. Nor would the argument that the requests seek personally identifiable health information since the law requires the production of non-exempt information with redactions of exempt information.

Moreover, your denial would at least in part be based on overbreadth, which requires an explanation of how your records are maintained and accessed to permit revision of the requests. Explaining accessing database records would include an explanation of DOH's relevant existing programming and how it has been used. This would include not only the capacity of DOH's inhouse databases, but also its use of licensed SAS software. If this proceeds to litigation, this requirement would justify discovery of how DOD has used these programs to assess whether new programming would be required to respond to Huwig's requests. DOH's duty to provide this information is designed to avoid doing this in the expensive and laborious context of litigation. I remain open to work with you to revise Huwig's requests based on such information as appropriate.

You have denied Huwig's requests for information on DOH's maintaining and accessing of records on the grounds that it would disclose critical computer systems. The meaning of this exception to the DOH's duties under the Public Records Act would present a case of first impression that would center on the plain meaning of the term "critical systems". Broadly, "critical systems" include those that could lead to serious safety, mission, business, or security failures. DOH will have the burden of proving this exception. It does not appear that such an argument would be viable in the context of maintaining and accessing a database. But again, I am willing to work with you to address any legitimate concern.

Huwig has also requested the 2021 mortality and Covid-19 vaccination datasets so she can obtain the requested reports herself, since DOH won't provide them. You have denied this request based on overbreadth and excessive volume. Overbreadth concerns arise when a public office is not reasonably able to identify the requested records. The 2021 mortality and Covid-19 datasets are clearly identifiable as you have already provided the data dictionaries for these datasets. The excessive volume concern involves unreasonable interference with the record-keeper. Such interference can arise in the context of copying a large set of a public office's paper records. There is no such interference in the context of providing a database file, which is an easily transferable compilation record , not a huge set of individual paper records.

I remain open to work with you to resolve the above issues but will need information from your office regarding maintain and accessing the subject records to do so. Please let me know your response. Feel free to call me at 330-888-1240 to discuss this matter.

Thomas W. Connors
Mendenhall Law Group
190 North Union Street, Suite 201
Akron, Ohio 44304
330-888-1240

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IN THE COURT OF CLAIMS OF OHIO

LAUREN (CID) STANDIFER Requester v. OHIO DEPARTMENT OF HEALTH Respondent	Case No. 2022-00217PQ Special Master Jeff Clark ORDER

In order to render a determination in this case, the Special Master requires an additional pleading from respondent. Pursuant to R.C. 2743(E)(3)(c), respondent is directed to submit the affidavit(s) of a person with direct personal knowledge to answer the following questions:

1. Was respondent capable on the date of the request of exporting the full data contents of the Electronic Death Registration System (EDRS) through EDRS report options and/or EnterpriseDataWarehouseSecure as a electronic comma delimited, MS Excel, MS Access, or any other data, spreadsheet, or database files? If not, explain.

2. Is respondent capable of deleting and/or electronically obscuring the contents of selected data columns from any or all of the available export formats listed in the answer to Question No. 1? If not, explain.

3. Did respondent remain capable on the date of the request of printing selected contents of the EDRS, as it did for the partial printout provided to Standifer/The Cleveland Plain Dealer in 2017 (Reply, 2583-page Attachment)? If not, explain.

    a. Is respondent capable of using menu options in the EDRS and/or EnterpriseDataWarehouseSecure software to obscure selected data



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columns from any available paper printout listed in the answer to Question No. 3? If not, explain.

b. Is respondent capable of obscuring selected data column content from any available paper printout listed in the answer to Question No. 3 by photocopying the printout after applying opaque masks to column contents or blackening data column contents or otherwise applying redactions? If not, explain.

4. On the date of requester's request, did ODH remain capable of downloading "all selected EDRS data except the names and addresses of decedents" as found in *Ludlow v. Ohio Dept. of Health*, Ct. of Cl. No. 2021-00040PQ, 2021-Ohio-2651, ¶ 2-14 and affirmed at *Ludlow v. Ohio Dept. of Health*, Ct. of Cl. No. 2021-00040PQ, 2021-Ohio-3532, ¶ 6-7, 14. If the answer is no, explain.

5. On the date of requester's request, did ODH remain capable of producing selected death data output from both the EDRS and EnterpriseData WarehouseSecure, as found in *Miller v. Ohio Dept. of Health*, Ct. of Cl. No. 2020-00618PQ, 2021-Ohio-996, ¶ 10-16 and affirmed at *Miller v. Ohio Dept. of Health*, Ct. of Cl. No. 2020-00618PQ, 2021-Ohio-1901, ¶ 3, 8. If the answer is no, explain the following separately:

   a. Has ODH produced customized datasets from the EDRS to public records requesters in the past as found in *Miller*, 2021-Ohio-996 at ¶15-16? If the answer is no, explain.

   b. Separately address the technical ability or inability of ODH to produce any customized categories of death data output directly from the EDRS.

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c. Separately explain any claimed inability of ODH to produce customized categories of death data output directly from EnterpriseData WarehouseSecure.

6. On the date of requester's request, did EnterpriseDataWarehouseSecure remain capable of accepting instructions to extract specified EDRS death data information, download that information into another format, and organize that information into a report as found in *Knapp v. Ohio Dept. of Health*, Ct. of Cl. No. 2021-00191PQ, 2021-Ohio-3130, ¶ 7-11 and affirmed at *Knapp v. Ohio Dept. of Health*, Ct. of Cl. No. 2021-00191PQ, 2021-Ohio-3244, ¶ 8. If the answer is no, explain.

7. On the date of requester's request, did ODH remain capable of downloading selected EDRS data as found in *WCPO-TV v. Ohio Dept. of Health*, Ct. of Cl. No. 2020-00513PQ, 2021-Ohio-1151, ¶ 3, 14-16, adopted at *WCPO-TV v. Ohio Dept. of Health*, Ct. of Cl. No. 2020-00513PQ, 2021-Ohio-1566, ¶ 3-4,16, and affirmed at *WCPO-TV v. Ohio Dept. of Health*, 2022-Ohio-1864, 189 N.E.3d 1287, ¶ 8, 11. If the answer is no, explain.

The supplemental response shall be filed *on or before January 9, 2022*. On receipt of this pleading the court will determine whether any further information is required from either party.

JEFF CLARK
Special Master

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cc:

LAUREN STANDIFER
3339 West 130th Street
Cleveland, OH 44111

Vivian Phillips Tate
30 East Broad Street, 26th Floor
Columbus, OH 43215

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ODH Affidavit of Devon Priddle 01 20 2023.pdf

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E-Signature Summary

E-Signature 1: DEVON PRIDDLE (DP)
January 20, 2023 08:36:09 -8:00 [486161A989E6] [156.63.69.217]
Devon.Priddle@odh.ohio.gov (Principal) (ID Verified)

E-Signature Notary: Joshua Richardson (JR)
January 20, 2023 08:36:09 -8:00 [0D9798790F4B] [64.128.48.50]
Joshua.Richardson@OhioAGO.gov
I, Joshua Richardson, did witness the participants named above electronically sign this document.

RELATOR'S EXHIBIT
F

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IN THE COURT OF CLAIMS OF OHIO

LAUREN CID STANDIFER	:	
	:	**CASE NO.: 2022-00217PQ**
Requestor,	:	
	:	**SPECIAL MASTER JEFF CLARK**
	:	
	:	
OHIO DEPARTMENT OF HEALTH	:	
	:	
Respondent.	:	

AFFIDAVIT OF DEVON PRIDDLE

STATE OF OHIO

COUNTY OF FRANKLIN SS:

Devon Priddle, being first duly sworn, states as follows:

1. I am the Data Administration Manager of the Ohio Department of Health's Bureau of Vital Statistics ("ODH/VS"), 4200 Surface Road, Columbus, Ohio 43215. I have been employed in this capacity since 2016.
2. In my role as the ODH/VS Data Administration Manager, I review reported vital record information for completeness, monitor statistical quality, manage requests for vital record data, and ensure information is protected according to federal and Ohio laws, as well as with ODH policies.
3. I make this Affidavit based on my personal knowledge. The information provided here has been prepared to the best of my knowledge and ability. Several key management staff in ODH/VS retired in 2021 and 2022 (Chief Karen Sorrell and Statistical Manager John Paulson). I have attested to the information I am aware of based on my understanding of EDRS, the ODH warehouse, and the operations of ODH/VS that I have been involved in. I am not an attorney, and I was not personally involved in several of the legal cases mentioned in the Special Master's December 21, 2022, Order.
4. I have personal knowledge regarding the matters previously set forth in the affidavits of Judith Nagy and Brian Fowler. Without repeating the previous statements, I assert my agreement and add to them as set forth here.
5. In response to the Special Master's December 21, 2022 Order, Special Master requested Item 1:

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a. As of August 24, 2021, and to the present, the Electronic Death Registration System (EDRS) does not offer an export or report function for the full data contents of the death dataset in any format. EDRS is programmed to print certificates of death but does not produce spreadsheets or similar files.

b. Most, but not all, EDRS data is transferred daily to the ODH Ohio Public Health Information Warehouse (referred to as the EnterpriseDataWarehouseSecure) secure mortality dataset using a specially created software "bridge" programmed to perform this specific task. On August 24, 2021, the date of the request, the secure mortality dataset could be exported as a spreadsheet from the Warehouse.

6. In response to the Special Master's December 21, 2022 Order, Special Master requested Item 2:
   a. Yes, ODH/VS staff are capable of manually deleting or redacting the contents of selected data columns from a mortality data file exported as a spreadsheet from the Warehouse to create a custom report.
7. In response to the Special Master's December 21, 2022 Order, Special Master requested Item 3:
   a. ODH/VS staff are capable of printing certificates of death from EDRS and were capable at the time of the information request. The partial printout provided, Reply – 2583, was not printed from EDRS, as explained in previous affidavit, p. 2 section 5(c). Rather, it was produced by employing special software, SAS.
   b. EDRS does allow the redaction of a decedent's social security number when printing a certificate of death, but it does not support the redaction or obscuring of any other field.
   c. The Warehouse does not include functionality to redact or obscure data fields for a particular custom data request. Staff had previously programmed each dataset (mortality, natality, fetal death, etc.) to export a particular set of variables in fixed positions to users with access to the secure dataset.
   d. ODH/VS issuance staff are capable of manually obscuring selected data field content from a printed death certificate; however, a certified copy of a vital record cannot be issued without the fee required by Ohio Revised Code section 3705.24.
8. In response to the Special Master's December 21, 2022 Order, Special Master requested Item 4:
   a. The affidavit I signed on September 30, 2022 includes an explanation of the process for obtaining the data addressed in the noted case with Mr. Ludlow. I also explained the data request would have been fulfilled by the previous ODH/VS statistical manager. That explanation is incorporated here. At the time of Mr. Ludlow's series of public records requests in 2021, the previous ODH/VS statistical manager preferred using the SAS software tool for organizing the

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data and creating a customized data request.

b. ODH/VS staff were not and are still not capable of producing a death data file from EDRS, because the application does not offer an export or output function for death data fields. EDRS is programmed to print certificates of death but does not produce database files.

c. ODH/VS data staff were and are still capable of downloading the secure mortality data file from the Warehouse but the download cannot exclude select fields, such as names and addresses of decedents. The secure mortality download file includes names, addresses, dates of birth, medical cause of death, race codes, location codes, cause of death codes, and more.

9. In response to the Special Master's December 21, 2022 Order, Special Master requested Item 5:

a. ODH/VS staff were not and still are not capable of producing a death data file from EDRS, because the application does not offer an export or output function for death data fields. EDRS is programmed to print certificates of death but does not produce database files.

b. ODH/VS staff were and are still capable of downloading the secure mortality data file from the Warehouse but the download cannot exclude select fields from the download, such as residential addresses, race codes, and more.

c. Yes, as general courtesies, customized datasets were provided by ODH/VS data staff prior to the COVID pandemic, which required many ODH/VS staff to be reassigned to pandemic surveillance tasks on March 13, 2020.

d. EDRS was developed and configured by an external vendor who requires payment for the development of any technical function such as data reporting. When purchased, EDRS was only programmed to print death certificates.

e. The Warehouse does not include functionality to redact or obscure data fields for a particular custom data request. State technical staff had previously programmed each dataset (mortality, natality, fetal death, etc.) to export a particular set of variables in fixed positions to users with access to the secure dataset.

10. In response to the Special Master's December 21, 2022 Order, Special Master requested Item 6:

a. Most, but not all, EDRS data is transferred daily to the Warehouse secure mortality dataset. Yes, in 2021 when both Ms. Knapp and Standifer requested personally identifiable death data, the mortality dataset could be exported as a spreadsheet from the Warehouse on the date of the information request as a .csv file format and made available for ODH/VS staff to organize as a custom data request.

11. In response to the Special Master's December 21, 2022 Order, Special Master requested Item 7:

a. ODH/VS staff were not and still are not capable of producing a death data file from EDRS, because

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the application does not offer an export or output function for selected death data fields. EDRS is programmed to print certificates of death but does not produce database files.

FURTHER AFFIANT SAYETH NAUGHT

DEVON PRIDDLE

Devon Priddle

Sworn and subscribed in my presence this 20th day of January 2023.

Notary Public

NOTARY PUBLIC STATE OF OHIO

Joshua Richardson
Commission # 2021-RE-831897
Electronic Notary Public
State of Ohio
My Comm Exp. May 23, 2026

Notarial act performed by audio-visual communication

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IN THE COURT OF CLAIMS OF OHIO

ROSANNA L. MILLER Requester v. OHIO DEPARTMENT OF HEALTH, VITAL STATISTICS Respondent	Case No. 2020-00618PQ Special Master Jeff Clark ORDER

On December 10, 2020, requester filed a reply asserting that respondent maintains and accesses its records in the ordinary course of operations utilizing programming that is capable of, and has been used in the past, to produce records functionally identical to those requested. Requester has provided copies of two previous reports received from respondent that include; for the first - the county, last name, gender, age, date of death, place type of death, and cause of death code for a selected cause of death over a six year period (Reply Exh. F), and for the second - the first and last name, age, date of death, county of death, autopsy Y/N, place type of death, and cause of death code for a selected cause of death over a six-year period, (Reply Exh. H.) Requester submitted a report downloaded from respondent's web site that shows the code used for COVID-19 as a cause of death. (Complaint Exh. B.)

Additional Information and Documents Required

In order to evaluate the claims and defenses presented in this case, the special master requires an additional pleading from respondent. Pursuant to R.C. 2743.75(E)(3)(c), respondent is directed to file a supplemental pleading (Sur-reply) that addresses and provides the following:

1. Identify all ODH electronic data management programs (e.g., Electronic Death Registration System (EDRS) and other commercial or legacy database or spreadsheet systems) in which the data categories requested by Miller were

RELATOR'S EXHIBIT
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OF OHIO
2021 JAN 22 PM 1:53

maintained as of April 20, 2020 for any portion of the date range in her public records request.

2. For each ODH program identified in response to 1., identify all file formats in which the program is capable of producing data and reports by Save As, Export, Print, or any other output function of the program.
3. On April 20, 2020, was the existing programming of the EDRS capable of producing a report or other compiled output responsive to all or any part of the request? If so, describe all portions of the request for which a responsive record could be produced from the EDRS, including, if applicable, codes for cause of death.
4. Identify the content of the ODH report described as a "Death Data File." State whether the ODH data management program used to produce this report in the past remained capable on April 20, 2020 of producing the report.
5. Provide a copy of the EDRS user manual(s) and EDRS training materials used by and/or kept by ODH.
6. Unless included in the manuals and materials provided under item 5, provide screenshots of all menus and submenus available under EDRS interface tabs titled Reports, Archives, Policies & Documentation, and Administration, or functionally equivalent titles.
7. Describe how the EDRS is utilized in the ordinary course of ODH's duties, including input of, access to, and reporting of causes of death.
8. Explain how requester's Exhibits F and H were created, including but not limited to the source of each data column and the specific program(s) used to create the reports.
9. Support answers to the above with affidavit(s) from ODH Information Technology personnel or other officials with direct personal knowledge of the output capabilities of the relevant ODH electronic systems.

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OF OHIO

2021 JAN 22 PM 1:53

10. Provide any desired supplemental legal argument in support of responses to this order, and in response to requester's reply.

Respondent shall file its sur-reply **on or before February 9, 2021.** On receipt of the information and documents required by this order, the court will determine whether further information is required.

for JEFF CLARK
Special Master

cc:

ROSANNA L. MILLER
10469 Westfall Road
Amanda, OH 43102

William C. Greene
30 East Broad Street, 26th Floor
Columbus, OH 43215

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IN THE OHIO COURT OF CLAIMS

ROSANNA MILLER	**CASE NO. 2020-00618PQ**
V.	**SPECIAL MASTER JEFF CLARK**
OHIO DEPARTMENT OF HEALTH VITAL STATISTICS	

AFFIDAVIT OF KAREN SORRELL

1. I, Karen Sorrell, being duly sworn and cautioned according to law, state as follows:

2. I currently serve as the Chief of the Ohio Department of Health's Bureau of Vital Statistics.

3. In this role, I oversee all aspects of the Office, including the management of the Vital Statistics data system known as the Electronic Death Registration System ("EDRS").

4. EDRS is a state-managed data system for tracking the information received by the ODH.

5. EDRS is the system of record for death data for the ODH.

6. Based on personal knowledge and the best information available to me, I assisted in preparing the document titled "Responses to Additional Information and Documents Required" as well as the materials requested by the Special Master on January 29, 2021.

7. Copies of the documents are attached hereto as:

- Exhibit A – Responses to Additional Information and Documents Required

RELATOR'S EXHIBIT
H

- Exhibit B – Death Data File Layout
- Exhibit C – E Physician EDRS Guide
- Exhibit D – VS-FuneralHomeEDRSGuide2016
- Exhibit E – VS-CoronerEDRSGuide2018
- Exhibit F – EDRS Pages from Local VS Manual 2018
- Exhibit G – EDRS Menu Screenshots

FURTHER AFFIANT SAYETH NAUGHT.

Karen Sorrell

STATE OF OHIO }
} SS:
COUNTY OF FRANKLIN }

Sworn before me and subscribed in my presence by Karen Sorrell, this 11th day of February, 2021.

BRIAN J. CALANDRA
ATTORNEY AT LAW
Notary Public
State of Ohio
LIFETIME COMMISSION

State of Ohio – Notary Public

Commission Expiration: N/A

Responses to Additional Information and Documents Required
February 16, 2021

April 20, 2020 Public Record Request
Name of deceased
Age
Date of Death
County of Death
Autopsy Y/N
Place of Death (hospital, residence, etc.)
Death Code of U07.1 (COVID)

1. As of April 20, 2020, ODH maintained the following programs/databases:

   - **QSTVRSOH** (this is the database designation and not an acronym. The database is commonly referred to as **EDRS** – Electronic Death Registration System)
   - **QSDB_Reporting** (this is the database designation and not an acronym).
   - **EnterpriseDatawarehouseSecure**

2 **EDRS**: EDRS contains death event data reported by funeral home directors, coroners, and local health departments. The sole function of EDRS is to create and print death certificates. Funeral homes are able to copy limited demographic text from EDRS of death events managed by the specific funeral home for internal use such as billing. Local health department Vital Statistics (VS) registrars can use the same limited demographic information to track disposition permits for remains (often referred to as burial permits).

QSDB_Reporting: No print or export function.

EnterpriseDatawarehouseSecure: EnterpriseDatawarehouseSecure database pulls nearly all the data contained in EDRS. The EnterpriseDatawarehouseSecure database serves as the backend database for the Ohio Public Health Information Warehouse. The warehouse has a public version **(Public Portal)** and a secure version **(Secure Portal)** which requires a login. The Public Portal aggregates data and provides rates and counts with no identifying information; whereas, the Secure Portal allows access to identifying information, but access is limited to specific users such as state and other governmental agencies. The results from the Public Portal can be downloaded in Excel, PDF, Word, CSV file and printed. Those with access to the Secure Portal can download in Excel, PDF, Word, CSV file and print; or download a predefined file as designed by the National Center for Health Statistics.

The EnterpriseDarawarehouseSecure database is then divided into two modules through the Secure Portal: The **Secure Mortality Module** and the **Secure Death Roster Module.**

The Secure Mortality Module contains virtually all variables that are collected via EDRS and used by individuals and specific governmental agencies with statutorily mandated broad access (e.g., Medicaid).

The Death Roster Module contains data for deaths that occurred in Ohio for the purpose of assisting agencies with maintaining current records and identifying deceased and former members of the armed forces. There is identifying demographic information; however, no cause of death information is included. The downloadable files provide two choices: The Deceased Ohioans Report (created monthly) and the Deceased Veterans Report (created quarterly). Access to the module is limited to State of Ohio agencies, other government agencies, hospitals, veteran commission offices, and government agencies such as boards of election, pension funds, local JFS offices, courts, and prosecutors. The public and non-governmental entities can request the Deceased Ohioans report free of charge but are not provided access to the module.

3. No. EDRS is used by a limited number of funeral home and local registrar staff as described in #2 above. For any additional use, the data must be removed from EDRS to a different platform before 3rd party software can be applied. See #2 above and #4 below.

4. The Death Data file contains the variables in the attachment named Death Data File Layout. Although, the Bureau of Vital Statistics could produce this report on April 20, 2020 using 3rd party software, it is not created in the normal course of business and serves no operational function.

5. The Bureau of Vital Statistics maintains four user manuals related to EDRS. They are attached to this document.

6. Attached are EDRS menu screenshots for EDRS menus/sub-menus that are not included in the manuals.

7. EDRS is used by funeral home staff to create individual death records for those who died in Ohio. Funeral home staff enter demographic information about the decedent gathered from the family such as their full name, place of residence, education, marital status, and the place of death. Funeral homes then select (in EDRS) the attending physician or coroner as appropriate to certify the medical/cause of death information. All coroners and physicians who have registered electronically complete the cause of death and certify their portion of the record directly in EDRS; unregistered physicians complete the cause of death on a printed paper version of the death record (printed from EDRS). Once both the funeral director responsible for the disposition and the physician or coroner have signed the record it is filed with the local health department (LHD). Electronically certified death records are filed/registered electronically with no action needed by the LHD; paper death records are forwarded by the LHD to the Bureau of Vital Statistics so staff can enter the cause of death into EDRS and register the death event record. Once the record is registered it is available for issuance from EDRS as a printed death certificate.

8. Based on review of the exhibits it appears that both exhibits were created using a customized Statistical Analysis Software (SAS) query. SAS is a 3rd-party software product. However, ODH cannot definitively confirm the source.

Ohio | Department of Health

Mike DeWine, Governor
Jon Husted, Lt.Governor

Stephanie McCloud, Director

DIRECTOR JOURNAL ENTRY

In re COVID 19 Volunteer Vaccine Providers.

WHEREAS, the Governor declared a State of Emergency on March 9th, 2020, due to novel Coronavirus (2019-nCoV, known as COVID-19), a disease of major public concern; and

WHEREAS, the United States Food and Drug Administration (FDA) has granted Emergency Use Authorizations (EUAs) to the COVID vaccines developed by Pfizer and Moderna; and

WHEREAS, a large-scale campaign will be needed to vaccinate all Ohioans who wish to be vaccinated once the vaccines become sufficiently available; and

WHEREAS, general and city health departments have plans to use points of dispensing and clinic locations to support a large-scale vaccination campaign; and

WHEREAS, Medical Reserve Units have been established throughout Ohio to support a large-scale vaccination campaign; and

WHEREAS, there may be an insufficient number of health professionals available to conduct a large-scale vaccination campaign; and

WHEREAS, Section 3701.048 of the Revised Code, allows the Director of Health to, in consultation with the appropriate professional regulatory boards of Ohio, develop protocols that authorize individuals to administer, deliver, or distribute drugs, other than schedule II and III controlled substances, during a period of time the Governor declares to be an emergency that affects the public's health;

NOW THEREFORE, I, Stephanie McCloud, Director, Ohio Department of Health (ODH), in accordance with my authority set forth in Section 3701.048, **HEREBY ORDER AND AUTHORIZE**, the following professionals, within the scope of their respective licensure and according to the competencies set forth by their respective licensing board, unless otherwise stated herein, to administer, deliver, or distribute the

RELATOR'S EXHIBIT
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drugs, other than schedule II and III controlled substances, set forth in this order during this COVID State of Emergency, notwithstanding any statute or rule that otherwise prohibits or restricts the administration, delivery, or distribution of drugs by these professionals:

(1) A physician authorized under Chapter 4731. of the Revised Code to practice medicine and surgery, osteopathic medicine and surgery, or podiatric medicine and surgery;

(2) A physician assistant licensed under Chapter 4730. of the Revised Code;

(3) A dentist or dental hygienist licensed under Chapter 4715. of the Revised Code;

(4) A registered nurse licensed under Chapter 4723. of the Revised Code, including an advanced practice registered nurse, as defined in section 4723.01 of the Revised Code;

(5) A licensed practical nurse licensed under Chapter 4723. of the Revised Code;

(6) An optometrist licensed under Chapter 4725. of the Revised Code;

(7) A pharmacist or pharmacy intern licensed under Chapter 4729. of the Revised Code;

(8) A respiratory care professional licensed under Chapter 4761. of the Revised Code;

(9) An emergency medical technician-intermediate (now known as an "Advanced EMT") or emergency medical technician-paramedic (now known as a "Paramedic") who holds a certificate to practice issued under Chapter 4765. of the Revised Code;

(10) A veterinarian licensed under Chapter 4741. of the Revised Code.

For this Order to apply, these individuals will need to be Registered Volunteers pursuant to Section 5502.281 of the Revised Code and actively deployed by a recognized Medical Reserve Corps (MRC) unit in support of points of dispensing.

Pharmacy interns, medical, and nursing students who are sufficiently advanced in their education at their respective professional schools with the necessary

c. However, if it is not feasible to adhere to the recommended interval, the second dose of Pfizer and Moderna may be scheduled for administration 4 days before the 21 or 28 day intervals depending on product being administered and up to 6 weeks (42 days) after the first dose.

d. There are currently limited data on efficacy of mRNA COVID-19 vaccines administered beyond this window.

e. If the second dose is administered beyond these intervals, there is no need to restart the series.

8. Document the Vaccination.

a. Medical Record: Record the date and the vaccine that was administered, the manufacturer and lot number, the vaccination site and route, the vaccine dosage, and the name and title of the person administering the vaccine. Document the VIS given, and VIS publication date.

b. Immunization Record Card: Record the date of vaccination, product name/manufacturer, lot number and the name/location of the administering clinic or healthcare professional.

c. Documentation of the vaccination in Ohio's immunization information system - ImpactSIIS within 24 hours following vaccination.

9. Observe the Vaccine Recipient.

a. 30 minutes: Persons with a history of an immediate allergic reaction of any severity to a vaccine or injectable therapy and persons with a history of anaphylaxis due to any cause.

b. 15 minutes: All other persons.

10. Emergency Protocols

a. If a patient experiences itching and swelling confined to the injection site where the vaccination was given, apply a cold compress to the injection site. Observe patient closely for the development of generalized symptoms until symptoms subside.

b. If symptoms are generalized (generalized itching, redness, urticaria (hives); or include angioedema (swelling of the lips, face, or throat); shortness of breath; shock; or abdominal cramping; call 911 and notify the supervising healthcare professional. Notifications should be done by a second person while the primary healthcare professional assesses the airway, breathing, circulation and level of consciousness of the patient. Vital signs (heart rate, respirations and blood pressure, pulse ox) should be taken every 5 minutes.

i. First-line treatment of an anaphylactic reaction is to administer Epinephrine (1 mg/ml aqueous solution [1:1000 dilution]) intramuscularly.

ii. The adult dose is 0.3mg to 0.5mg with maximum dose of 0.5mg; or as auto-injector (0.3 mg)

iii. For hives or itching, you may also administer diphenhydramine (orally or intramuscular with a standard dose of 25-50mg.) or hydroxyzine (standard oral dose is 25mg -100mg or 0.5-1.0 mg/kg.

iv. Monitor the person closely until EMS arrives. Monitor blood pressure and pulse every 5 minutes.

v. If EMS has not arrived and symptoms are still present, repeat dose of epinephrine every 5-15 minutes for up to 3 doses depending on the person's response.

vi. Record the person's reaction to the vaccine (e.g., hives, anaphylaxis), all vital signs, and medications administered to theperson, including time dosage, response, and the name of the medical personnel who administered the medication and other relevant clinical information.

vii. Adverse events must be reported to the Vaccine Adverse Event Reporting System (VAERS) at https://vaers.hhs.gov/reportevent.html or call 1-800-822-7967.

viii. Report the adverse event to the person's primary care provider.

Pursuant to R.C. 3701.352, this order is to prevent a threat to the public's health; no person shall fail to follow this order.

Stephanie McCloud

Stephanie McCloud
Director of Health

2.12.2021

Date